



CHAPTER liii.

An Act to authorise Sir W. G. Armstrong Whitworth and Company Limited to construct a branch railway in the city of Manchester and to provide for the conveyance of traffic between the works of the Company in the said city and the Lancashire and Yorkshire Railway.

A.D. 1917.

[21st August 1917.]

WHEREAS Sir W. G. Armstrong Mitchell and Company Limited were registered on the fourteenth day of November one thousand eight hundred and eighty-two as a company limited by shares under the provisions of the Companies Act 1862 as amended by subsequent Acts for the purpose of taking over the properties of Sir W. G. Armstrong and Company mechanical engineers and of Messrs. C. Mitchell and Company shipbuilders and of carrying on those businesses and in addition the manufacture of steel:

And whereas the said limited company were reconstructed and on the thirty-first day of January one thousand eight hundred and ninety-six reincorporated under the provisions of the Companies Acts 1862 to 1890 and as so reincorporated are herein-after referred to as "the Company":

And whereas the Company subsequently acquired the business of Sir Joseph Whitworth and Company Limited and the name of the Company was changed to "Sir W. G. Armstrong Whitworth and Company Limited":

And whereas the Company have large works in the city of Manchester and contemplate a considerable and important enlargement and extension of those works:

[Ch. liii.] *Sir W. G. Armstrong Whitworth* [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.

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— And whereas the existing facilities for the conveyance by railway to and from the said works of the Company of the materials and things required by the Company or manufactured by them at the said works are inadequate and will become increasingly so owing to the constant increase in the quantity of such materials and things and also in consequence of such enlargement and extension as aforesaid:

And whereas the provision of further facilities for the conveyance by railway to and from the said works of such materials and things as aforesaid would not only increase the utility of the said works but is also essential as a condition of the execution of such enlargement and extension as aforesaid and moreover would to a considerable extent obviate the necessity for using the public thoroughfares of the said city for such conveyance and it is expedient that the powers contained in this Act with respect to such provision should be conferred upon the Company:

6 & 7 Geo. 5.
c. xlvii.

2 Edw. 7.
c. cxxxviii.

And whereas it is expedient that for the purpose of such provision as aforesaid the Company should be empowered to make and maintain the short length of railway by this Act authorised and to run over and use the Railway No. 1 authorised by the Clayton Aniline Company Limited (Railways) Act 1916 and (by agreement with the corporation) the branch railway of the corporation authorised by the Manchester Corporation (General Powers) Act 1902 and thereby to obtain a means of direct railway communication between their said works and the railways of the Lancashire and Yorkshire Railway Company:

And whereas it is expedient that with the object of improving and increasing the capacity of the said branch railway of the corporation for accommodating the traffic of the Company and of the corporation and other persons now or hereafter using the same the Company should be authorised to widen a part of the said branch railway as provided by this Act and that the corporation should contribute towards the cost of portions of such widening:

And whereas it is expedient that such other provisions as are in this Act contained should be made:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the railways and works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken or used for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster and are herein-after respectively referred to as the deposited plans sections and book of reference : A.D. 1917.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as *Sir W. G. Armstrong Whitworth and Company Limited (Railways) Act 1917.* Short title.

2. The following Acts and part of an Act (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and Part I. (relating to construction of a railway) of the Railways Clauses Act 1863. Incorporation of general Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And for the purposes of this Act the following expressions have the meanings herein-after assigned to them respectively (viz.):— Interpretation.

“The Company” means *Sir W. G. Armstrong Whitworth and Company Limited*;

“The corporation” means the lord mayor aldermen and citizens of the city of Manchester;

“The Clayton Company” means the Clayton Aniline Company Limited;

“The Clayton Act” means the Clayton Aniline Company Limited (Railways) Act 1916;

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“The branch railway of the corporation” and “the Clayton Railway” mean respectively the branch railway authorised by the Manchester Corporation (General Powers) Act 1902 and the Railway No. 1 authorised by the Clayton Act;

“The railways” means the railways by this Act authorised;

“The railway widening” means the widening of the branch railway of the corporation by this Act authorised.

Power to
make rail-
ways and
railway
widening.

4. Subject to the provisions of this Act the Company may make and maintain in the lines or situation and according to the levels shown on the deposited plans and sections the railways and railway widening shown on the deposited plans together with all proper junctions lines of rail sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for the purposes of the railways railway widening and works herein-before referred to The railways and railway widening herein-before referred to and authorised by this Act are situate in the township and city of Manchester in the county palatine of Lancaster and comprise—

Railway No. 1 (8 chains or thereabouts in length) commencing by a junction with the Clayton Railway at a point thereon $7\frac{1}{2}$ chains or thereabouts westward of the junction between Chatham Street and Clayton Lane and terminating on the easterly side of Clayton Lane at a point 4 chains or thereabouts southward of the bridge carrying Clayton Lane over the Manchester and Ashton Canal:

Railway No. 2 (1 furlong 6 chains or thereabouts in length) commencing by a junction with Railway No. 1 by this Act authorised at the point of termination thereof and terminating in the main line of the railways in the North Street Works of the Company at a point therein 10 chains or thereabouts northward of the northerly end of George Street:

A widening of the branch railway of the corporation on the easterly side thereof between Stuart Street and a point in the said branch railway 3 chains or thereabouts north-eastward of the bridge carrying that railway over Bank Street.

5. The Company in constructing the railways and railway widening may deviate from the lines thereof shown on the deposited plans to the extent of the limits of deviation marked on such plans and may deviate from the levels thereof shown on the deposited sections to any extent not exceeding six feet upward or downward.

A.D. 1917.

Power to deviate in construction of works.

6. The Company (subject to the provisions of the agreement set out in the Second Schedule to this Act) may use for the purposes of the construction maintenance and use of Railway No. 1 by this Act authorised including the laying thereon of lines of rail so much of Chatham Street in the township of Manchester as is situate between the junction of that street with Clayton Lane and a point $3\frac{1}{2}$ chains or thereabouts measured along Chatham Street in a westerly direction from that junction and as is included within the limits of deviation shown upon the deposited plans Provided that subject and without prejudice to such rights of user as aforesaid nothing in this section shall authorise the Company to stop up permanently or exclude other traffic from using the said portion of Chatham Street.

Use of part of Chatham Street for construction &c. of railway.

7. The Company may in the construction of Railway No. 1 by this Act authorised carry the same with a single line only across and on the level of Clayton Lane in the said township of Manchester.

Power to cross Clayton Lane on level.

The provisions of section 47 of the Railways Clauses Consolidation Act 1845 and of sections 6 7 and 8 of the Railways Clauses Act 1863 shall not apply to or in respect of the construction maintenance or use of the said railway or any lines of rail laid by the Company across and on the level of the said Clayton Lane.

8. Subject and in addition to the provisions of the agreement set out in the Second Schedule to this Act the provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of the corporation and shall be construed as if "corporation" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the corporation to which their revenues in respect of water or gas (as the case may be) are appropriated.

Protection of gas and water mains.

A.D. 1917.

As to pre-
scribed distance
under section
78 of Railways
Clauses Con-
solidation Act
1845.

9. For the purposes of the application of the Railways Clauses Consolidation Act 1845 to the railways and railway widening by this Act authorised the prescribed distance referred to in section 78 of that Act shall be three hundred yards.

Period for
completion
of works.

10. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Company to
acquire an
easement
only in cer-
tain cases.

11.—(1) Notwithstanding anything contained in this Act or in any Act incorporated therewith the Company in lieu of purchasing or acquiring the lands numbered on the deposited plans in respect of Railway No. 1 by this Act authorised 1 and 2 in the township of Manchester or any part or parts thereof shall acquire and the owners shall sell and grant accordingly the easement or right of using such of the said lands as may be necessary for the construction maintenance and use of that railway.

(2) The provisions of the Lands Clauses Acts so far as not inconsistent with the exercise by the Company of their rights under subsection (1) of this section to acquire such easements or rights as aforesaid in lieu of purchasing or acquiring lands shall apply to and in respect of the acquisition by the Company of such easements and rights as if the same were lands within the meaning of those Acts.

(3) For the purposes of this section the expression “owners” includes all persons having any estate or interest in the said lands and persons empowered by the Lands Clauses Acts to sell and convey or release such lands.

Owners may
be required
to sell parts
only of cer-
tain proper-
ties.

12. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without

material detriment thereto Therefore the following provisions shall have effect:— A.D. 1917.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the

A.D. 1917.

tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or

is not or but for this section would or would not be subject to A.D. 1917.
the provisions of section 92 of the Lands Clauses Consolidation
Act 1845.

The provisions of this section shall be stated in every notice
given thereunder to sell and convey any premises.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

15. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Power to Company to enter upon property for survey and valuation.

16. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been

Costs of arbitration in certain cases.

A.D. 1917. — prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

As to private rights of way over lands taken compulsorily.

17. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily by or vested in the Company shall as from the date of such acquisition or vesting be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Railway widening to be vested in corporation.

18. The railway widening shall as and when completed be vested in the corporation and subject to the provisions of this Act shall for all purposes form part of the branch railway of the corporation.

Subject to the provisions of the agreement set out in the Second Schedule to this Act the Company shall not be under obligation to maintain the railway widening or any part thereof.

Running powers over Clayton Railway.

19. Subject to the provisions contained in the agreement set out in the Second Schedule to this Act the Company their servants officers and agents may for the purposes solely of the traffic of the Company authorised by the said agreement run over and use with engines wagons trucks and vans the Clayton Railway.

20. Nothing contained in the following sections of the Clayton Act (viz.) :— A.D. 1917.

Section 18 (For protection of Great Central Railway Company);

Section 20 (Power to enter into working agreements);

Section 24 (Confirming agreement with corporation of Manchester);

Section 25 (Confirming agreement with Lancashire and Yorkshire Railway Company and corporation of Manchester);

As to user
by Com-
pany of cer-
tain works
referred to
in Clayton
Act and
agreements
scheduled
thereto.

or in the agreements between the corporation and the Clayton Company and between the Lancashire and Yorkshire Railway Company the corporation and the Clayton Company respectively scheduled to and confirmed by that Act shall prevent or interfere with the user by the Company for the purposes of their traffic of—

(a) The bridge for carrying the Clayton Railway over the Ashton or Manchester and Ashton Canal;

(b) The junction lines between the Lancashire and Yorkshire Railway main lines and the sidings of the corporation adjacent thereto;

(c) The said sidings of the corporation;

(d) The branch railway of the corporation;

(e) The additional sidings constructed or to be constructed pursuant to clause 32 of the said agreement between the corporation and the Clayton Company and clause 1 of the said agreement between the Lancashire and Yorkshire Railway Company the corporation and the Clayton Company;

(f) Any such additional sidings as are referred to in clause 34 of the said agreement between the corporation and the Clayton Company:

Provided that nothing in this section shall prejudice or affect the agreements scheduled to this Act or the arrangements therein provided for.

21. For the protection of the Great Central Railway Company (in this section referred to as "the Great Central Company") the following provisions shall except so far as it

For protec-
tion of Great
Central Rail-
way Com-
pany.

[Ch. liii.] *Sir W. G. Armstrong Whitworth [7 & 8 GEO. 5.]*
and Company Limited (Railways) Act, 1917.

A.D. 1917. may be otherwise agreed in writing between the Company and
— the Great Central Company have effect (that is to say):—

(1) In this section the expression “the old works” means the property and works of the Company situate to the south of the Ashton Old Road in the city of Manchester and any future enlargements or extensions of such works on the same side of such road and the expression “the new works” means the property and works of the Company situate to the north of Ashton Old Road aforesaid and any future enlargements or extensions of such works on the same side of such road:

(2) The Company shall not use or permit to be used the railways for any other purpose than for obtaining access to or from the new works and shall not use or permit the railways to be used for the conveyance of goods mineral merchandise or other traffic to for or from the old works nor shall they use or permit the railways to be used for the conveyance of goods mineral merchandise or other traffic of any kind of any other person or company Provided always that traffic in the first instance sent to the new works and actually unloaded therein and subsequently sent to the old works for consumption or manufacture shall not be deemed traffic to or for the old works If the Company shall use or permit the railways to be used for the conveyance of goods mineral merchandise or other traffic to for or from the old works they shall pay to the Great Central Company the rates or proportion of rates thereon to which the Great Central Company would have been entitled if the railways had not been constructed:

Provided that nothing in this section shall interfere with the exercise by the Clayton Company of the right conferred on that company under head (c) of Article 3 (3) of the agreement set forth in the Second Schedule to this Act:

(3) The Company shall pay to the Great Central Company in respect of the year commencing on the date of the opening for traffic of Railway No. 1 by this Act

authorised and in respect of every year thereafter A.D. 1917.
commencing on the corresponding date in such year
for traffic of any kind conveyed in such year to the
new works over the said Railway No. 1 the sum of
threepence per ton for the first two hundred thousand
tons and the sum of one penny per ton for every ton
beyond that quantity :

- (4) The Company shall keep true and perfect detailed accounts of the traffic conveyed over the said Railway No. 1 to the new works and shall furnish to the Great Central Company as soon as practicable after the end of each such year as aforesaid a copy of such detailed accounts for that year and will permit the Great Central Company and their authorised servants to inspect the originals of such accounts and to take all steps they may reasonably deem necessary to verify the accuracy thereof and to take particulars as and when the same is being conveyed of any traffic being conveyed from time to time over the said Railway No. 1 The aforesaid annual payments to be made by the Company to the Great Central Company shall be paid as soon as practicable after each account shall become due :
- (5) If any difference shall arise between the Company and the Great Central Company under the preceding provisions of this section such difference shall be determined by arbitration under and in accordance with the provisions of the Arbitration Act 1889 :
- (6) Except as by this Act expressly varied all powers rights and remedies given to the Great Central Company by the Clayton Act and all the restrictions and obligations imposed thereby upon the Clayton Company shall remain in full force and effect.

22. For the protection of the executors and trustees of the will of Charles Richard Lindsey deceased carrying on business as the Rubber Heel Manufacturing Company and their assigns owners of the property now occupied by them in and adjoining Chatham Street in the city of Manchester (herein-after in this section called "the owners") the following provisions shall unless

For protec-
tion of
Rubber Heel
Manufactur-
ing Com-
pany.

[Ch. liii.] *Sir W. G. Armstrong Whitworth* [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.

A.D. 1917. otherwise agreed between the owners the Company and the corporation have effect:—

- (1) Notwithstanding anything contained in this Act the Company shall not construct the railway in so much of Chatham Street as is situate opposite to or south-eastward of the property of the owners so that any part of the railway shall be more than eighteen inches north-eastward of the centre of that street:
- (2) Nothing in this Act or in any Act relating to any company or person working the railway shall exempt the Company or such company or person from liability for damage done to the owners by the working of the railway :
- (3) Nothing in this section shall be deemed to prejudice or affect the stipulations and arrangements embodied in the agreement set out in the Second Schedule to this Act.

Agreements
between
Company
Clayton
Company
corporation
and Lanca-
shire and
Yorkshire
Railway
Company.

23. The Company on the one hand and the Clayton Company the corporation and the Lancashire and Yorkshire Railway Company or any one or more of them on the other hand may enter into and carry into effect agreements with respect to--

The construction of the railways and railway widening or any part or parts thereof and of the works connected therewith :

The management maintenance working and use of the said railways railway widening and works and of the Clayton Railway and the branch railway of the corporation :

The supply and maintenance by the working party under and during the continuance of any such agreement as aforesaid for the working of such railways or railway widening or part thereof of engines stock and plant necessary for the purposes of such agreement and the employment of officers and servants :

The costs charges and expenses of such construction management maintenance working and use :

The regulation management and transmission of traffic passing or intended to pass over the railways and the Clayton Railway or any part thereof or the branch railway

of the corporation and the collection payment division
apportionment appropriation and distribution of charges
arising from any such traffic: A.D. 1917.

Provided that nothing in this section or in any agreement to be entered into under this section shall prejudice or affect the agreements scheduled to this Act or the arrangements therein provided for.

24. Nothing in any agreement made under the authority of this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across Railway No. 1 by this Act authorised the railway widening the Clayton Railway and the branch railway of the corporation and from time to time to alter such telegraphic lines and to enter upon the said railways and railway widening for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the making of any such agreement be at liberty to exercise all the rights aforesaid as freely and fully in all respects as he was entitled to do before the making of any such agreement. Saving for Postmaster-General.

25. In the event of the railways being worked by electricity the following provisions shall have effect:— For protection of Postmaster-General.

(1) The Company shall construct their electric lines and other works of all descriptions and shall work the railways in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the railways to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration:

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the railways the Company shall pay the expense of all such alterations in the telegraphic lines

A.D. 1917.

of the Postmaster-General as may be necessary to remedy such injurious affection:

- (3) Before any electric line is laid down or any act or work for working the railways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration:
- (4) If any telegraphic line of the Postmaster - General situate within one mile of any portion of the railways is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction or working of the railways the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company for working the railways enter the Company's works for the purpose of inspecting the Company's plant used in connexion with the railways and the working of such plant and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General such records (if any) as are kept by the Company pursuant to any requirement of the Board of Trade:
- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine

not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues: A.D. 1917.

- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act:

[Ch. liii.] *Sir W. G. Armstrong Whitworth [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.*

A.D. 1917.

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid:

(12) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on the railways.

Use of
railways for
traffic of
Company
and of Clay-
ton Com-
pany.

26. Notwithstanding anything contained in this Act or in the Acts incorporated with this Act the railways shall not be used for the conveyance of any traffic other than traffic destined for or arising at the works of the Company or of the Clayton Company.

Railways not
to be used for
passenger
traffic.

27. Notwithstanding anything in this Act the railways shall not be used for passenger traffic.

Power to
corporation
to borrow.

28.—(1) The corporation may (in addition to any other sums which they are authorised to raise) borrow or raise at interest on the security of the city rate any sums of money which they may require for the purpose of any expenditure or contribution by them under or for the purposes of this Act.

(2) The enactments mentioned or referred to in the Third Schedule to the Manchester Corporation Act 1914 to the extent indicated in that schedule and section 82 (Power to use one form of mortgage for all purposes) of that Act shall apply to all moneys to be borrowed by the corporation under the authority of subsection (1) of this section as if the same had been expressly repeated and re-enacted in this Act with reference to the further sums so authorised to be borrowed. Provided that subsection (3) of this section shall for the purpose of section 45 of the Manchester Corporation Act 1891 (being one of the enactments applied by this subsection) be deemed to be substituted for subsection (1) of the last-mentioned section.

(3) The corporation shall repay all moneys borrowed by them under the authority of subsection (1) of this section in any period not exceeding sixty years from the date of borrowing the same which period shall be the prescribed period for the purposes of section 45 of the said Act of 1891.

Confirming
agreement
with cor-
poration of

29. The agreement dated the twenty-seventh day of April one thousand nine hundred and seventeen and made between the corporation of the first part the Clayton Company of the

second part and the Company of the third part of which a copy is set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties in writing under their respective common seals: A.D. 1917.
 Manchester and Clayton Company.

Provided that any such modification as aforesaid which would affect or interfere with the rights or interests of the Lancashire and Yorkshire Railway Company under the agreement of which a copy is set forth in the Third Schedule to this Act shall not be made without the consent in writing of that company.

30. The agreement dated the twenty-seventh day of April one thousand nine hundred and seventeen and made between the Lancashire and Yorkshire Railway Company of the first part the corporation of the second part the Clayton Company of the third part and the Company of the fourth part of which a copy is set forth in the Third Schedule to this Act is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties in writing under their respective common seals. Confirming agreement with Lancashire and Yorkshire Railway Company corporation of Manchester and Clayton Company.

31.—(1) As to any addition to the city rate made by the corporation or under any precept from or at the instance or by the direction of the corporation for the purpose mentioned in the section of this Act the marginal note whereof is "Power to corporation to borrow" the owner or occupier of any land used only as a railway constructed under the powers of any Act of Parliament for public conveyance or of any land covered with water or used only as a canal or towing-path for the same shall be assessed in respect of the same in the proportion of one-fourth part only of the net annual value thereof as ascertained by the valuation list for the time being in force or if there be none by the rate for the relief of the poor made next before the making of such assessment. Railways to be rated at one-fourth only of net annual value thereof.

(2) The Local Government Board may from time to time by order make such regulations as seem to the Board necessary or proper respecting the form of the rates notices and accounts to be made used and kept by the overseers of any parish situate wholly or partly in the city with respect to any addition made

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A.D. 1917. under the powers of this Act to any city rate and to any assessment in respect thereof and an order under this section shall be deemed to be an order within the meaning of section 98 of the Poor Law Amendment Act 1834.

Consent of
Treasury to
borrowing of
money by
corporation. **32.** Notwithstanding anything in this Act the corporation shall not under the powers of this Act borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Costs of Act. **33.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1917.

THE FIRST SCHEDULE.

DESCRIPTION OF PROPERTIES OF WHICH PART ONLY MAY BE TAKEN BY THE COMPANY.

Work.	Parish or Place.	Numbers on deposited Plans.
Railway No. 1 - . -	Township of Manchester -	1
The railway widening .	Do. -	3 and 4

THE SECOND SCHEDULE.

ARTICLES of AGREEMENT made the twenty-seventh day of April one thousand nine hundred and seventeen between the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF MANCHESTER (herein-after referred to as "the corporation") of the first part the CLAYTON ANILINE COMPANY LIMITED whose registered office is situated at Chatham Street Clayton Manchester aforesaid (herein-after called "the Clayton Company") of the second part and SIR W. G. ARMSTRONG WHITWORTH AND COMPANY LIMITED whose registered office is situate at Newcastle-upon-Tyne (herein-after called "the Whitworth Company") of the third part.

Stamp.

Thirteen
pounds
fifteen
shillings.

WHEREAS the Whitworth Company are promoting a Bill in the present session of Parliament intituled "Armstrong Whitworth and Company (Railways)" (herein-after referred to as "the Bill") for an Act (herein-after referred to as "the intended Act") to authorise them to construct a branch railway in the city of Manchester and to provide for the conveyance of traffic between the works of the Whitworth Company in the said city and the Lancashire and Yorkshire Railway by means of that branch railway and of the private Railway No. 1 authorised by the Clayton Aniline Company Limited (Railways) Act 1916 (herein-after

A.D. 1917. referred to as "the Clayton Company's Act") and of the branch railway constructed by the corporation in connexion with their electricity works at Stuart Street Manchester aforesaid and to construct a widening of such last-mentioned branch railway and to interfere with the portion of Chatham Street coloured yellow on the plan (herein-after referred to as "the signed plan A") signed in triplicate by the town clerk of the city of Manchester (herein referred to as "the town clerk") and the secretaries of the Clayton Company and the Whitworth Company respectively and of which one copy has been deposited with the town clerk another copy with the secretary of the Clayton Company and another copy with the secretary of the Whitworth Company:

And whereas the corporation the Clayton Company and the Whitworth Company have agreed to enter into this agreement which it is intended shall be scheduled to and confirmed by the intended Act:

Now it is hereby mutually covenanted declared and agreed between and by the corporation the Clayton Company and the Whitworth Company jointly and severally in manner following (that is to say):—

LEVEL CROSSING OF CLAYTON LANE.

Article 1 The Whitworth Company shall construct the level railway crossing of Clayton Lane as a single line only and in such construction and the maintenance and user of the said level crossing shall observe and comply with the following provisions (viz.):—

(1) The rails with suitable guard rails or a tramway section of rail to which the paving abuts on both sides thereof as the Whitworth Company may elect shall be laid down and maintained by the Whitworth Company upon concrete foundations and so as to provide efficiently for the protection of all underground works of the corporation and so as to enable the corporation to obtain access to the said works for the purpose of inspection maintenance and diversion thereof and otherwise as may be required by the corporation The work shall at all times be executed and maintained by the Whitworth Company to the satisfaction of the city engineer:

(2) The top of the rails of the said level crossing shall not be permitted at any time to project above or to be sunk below the level of the surface of Clayton Lane adjacent thereto (except so far as such projection or sinking may be caused by any alteration or want of repair of such surface not occasioned by any act or default of the Whitworth Company) and the Whitworth Company shall indemnify the corporation against all claims and demands in respect of any damage or accident which may arise from any decay disrepair

dangerous or defective state of the said level crossing or of A.D. 1917.

the plates and rails thereof or any matter or thing connected therewith unless such dangerous or defective state is caused as aforesaid :

- (3) The Whitworth Company shall at all times after the construction of the said level crossing properly maintain and keep in repair the paving of Clayton Lane between the said rails and for a distance of two feet six inches on either side of the said rails :
- (4) No carriages or wagons passing along the proposed railways shall be moved across Clayton Lane otherwise than by such power and at such speed as may be reasonably sanctioned by the corporation which sanction may from time to time be given for such periods and subject to such conditions and regulations as the corporation may deem necessary for securing the safety of the public and the user of Clayton Lane for other traffic :
- (5) The Whitworth Company shall not except in case of emergency allow any wagon or carriage to stand on the said level crossing :
- (6) The Whitworth Company may use the level crossing between the hours of 6.0 p.m. and 6.0 a.m. and between such other two hours as the corporation may allow :
- (7) Whilst the Whitworth Company are using the said level crossing between sunset and sunrise or during the prevalence of fog the same shall be lighted as may be agreed upon between the corporation and the Whitworth Company and in case they cannot agree then as may be determined by arbitration and the said lighting shall be at the expense of the Whitworth Company :
- (8) Whilst the Whitworth Company are using the said level crossing a signalman shall be stationed by the Whitworth Company at such crossing and it shall be the duty of the said signalman when any cart or carriage approaches the site of the said crossing to give warning thereof by effectual signals to the officers and servants of the Whitworth Company so as to prevent the crossing of Clayton Lane by means of the said rails until such cart or carriage shall have passed and it shall be the duty of the Whitworth Company and their officers and servants to obey such warnings it being the express intention of this article that the carts and carriages passing along Clayton Lane shall have precedence over the traffic of the Whitworth Company using the said crossing :

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- (9) The Whitworth Company shall save harmless and keep the corporation and their officers and servants indemnified from and against all damages and costs in respect of every and all accidents damages and injuries happening in relation to the working or use of the level crossing or to any underground works of the corporation at or near the same through the act or default of the Whitworth Company or of any person in their employment or in respect of any nuisance vibration trespass or damage done or caused by engines carriages or wagons of the Whitworth Company or by any of the servants or persons employed by the Whitworth Company in or upon the level crossing or by any wilful or negligent acts of the Whitworth Company or their servants or employees in or about the said level crossing Should it be necessary at any time for the corporation during the maintenance or diversion of existing underground works or the construction of future underground works to disturb or interfere with the level crossing the corporation shall not be liable to compensate the Whitworth Company for damage or delay to the level crossing or to the traffic thereon caused by the reasonable execution by the corporation of any such maintenance diversion or construction as aforesaid it being the intention that the corporation shall continue to be entitled to use Clayton Lane for the purposes of their existing or future underground works notwithstanding the construction working or use of the level crossing by the Whitworth Company Nevertheless any interference by the corporation with the level crossing or the Whitworth Company's traffic thereon shall not exist longer than is reasonably necessary :
- (10) If the Whitworth Company or their officers or servants fail to comply with any of the restrictions or regulations contained in this article the Whitworth Company shall for every such default be liable to a penalty not exceeding twenty pounds to be recovered summarily by the corporation :
- (11) Before the Whitworth Company obstruct Clayton Lane or any part thereof in connexion with the laying down or maintenance of rails across such street under the powers of the intended Act they shall to the reasonable satisfaction of the city engineer make such provision as he may reasonably direct for preventing the stoppage of traffic along such street and they shall cause any obstruction in such street to be properly fenced and lighted.

CHATHAM STREET AND PURPLE LAND.

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Article 2 The following provisions shall as between the Whitworth Company and the corporation apply and have effect in the construction maintenance working and use by the Whitworth Company of the part of the proposed Railway No. 1 and the siding or turnout connected therewith which are intended to be laid as to the Railway No. 1 in the portion of Chatham Street coloured yellow on the signed plan A and as to the Railway No. 1 and the siding or turnout in the land of the Clayton Company coloured purple on the signed plan A (herein-after referred to as "the purple land") which purple land prior to the passing of the Clayton Company's Act formed part of that portion of Chatham Street which is referred to in Article 1 of the agreement dated the thirty-first day of May one thousand nine hundred and sixteen between the corporation and the Clayton Company (which agreement is set forth in the Second Schedule to the Clayton Company's Act and is herein-after referred to as "the Clayton Company's agreement") (that is to say):—

(1) The Whitworth Company shall construct and maintain the proposed Railway No. 1 as a single line only on the said portion of Chatham Street coloured yellow:

(2) The corporation shall retain and have the rights following (namely):—

(a) The right to maintain renew use and repair the existing sewers in the said portion of Chatham Street and in the purple land (the approximate positions of which sewers are indicated by dotted lines on the signed plan A) in perpetuity or until such sewers and the drainage connected therewith are diverted in accordance with the provisions of this agreement;

(b) The right to maintain use and repair the existing lamps poles brackets wires pipes gas water and electric mains and other things (all which are herein-after collectively referred to as "apparatus") in the said portion of Chatham Street and in the purple land until such time as the apparatus is diverted or removed in accordance with the provisions of this agreement;

(c) The right to divert the said existing sewers and the drainage connected therewith and the apparatus as and when the corporation may deem necessary:

The costs to be reasonably incurred by the corporation in maintaining renewing and repairing the said existing sewers in the said portion of Chatham Street and in the purple land and the reasonable cost of diverting the said existing

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sewers and the drainage connected therewith and the reasonable cost of diverting the apparatus and also the reasonable cost of maintaining the apparatus (if and so far as any such cost of maintenance renewal repair or diversion is increased or rendered necessary by the works of the Whitworth Company) shall be paid by the Whitworth Company to the corporation on demand and shall carry interest at five pounds per centum per annum from the date of demand if not paid within one calendar month after demand:

(3) The Whitworth Company shall not under the powers of the intended Act without the written consent of the city engineer and except under and subject to such conditions as he may prescribe erect or place any structures or works within a space of five feet on either side of the centre lines of the said sewers or so as to endanger the said sewers or to obstruct or interfere with the access thereto and the corporation shall have the right by their officers servants workmen and agents to enter upon such part of the Whitworth Company's railway as may be necessary for the purpose of inspecting and viewing the state of repair of and of repairing the said sewers and apparatus and for that purpose of opening up the land for a width of five feet on each side of the centre lines of the said sewers and of making such other openings as may be reasonably necessary for the purpose of repairing the said sewers or apparatus or for any other purpose connected with or incidental to the existence and user of the said sewers and apparatus without paying to the Whitworth Company any compensation for injury or damage to the Whitworth Company thereby but causing as little detriment or inconvenience to the Whitworth Company as the circumstances will admit And save as provided by the intended Act and this agreement the Whitworth Company shall not erect or place any structure or works (except as herein expressly provided) in any part of the said portion of Chatham Street or in any part of the purple land Provided that the said rights of the corporation shall not except in case of emergency be exerciseable at such times or in such manner as to obstruct or unduly interfere with the traffic on the Whitworth Company's railway:

(4) Not less than twenty-eight days before commencing any work in on or immediately abutting upon the said portion of Chatham Street or the purple land the Whitworth Company shall deliver to the city engineer a plan section and

description of such works describing the proposed manner of executing the same in so far as they affect the said sewers or apparatus: A.D. 1917.

- (5) The corporation may at any time within twenty-eight days of the receipt of such plan section and description by notice in writing reasonably require the Whitworth Company at their own cost to replace and lay down such existing works sewers and apparatus as may be specified by the corporation and to remove raise sink or otherwise alter the position of the said sewers or apparatus and support the same and to substitute temporarily or otherwise other sewers or other apparatus in such manner as may be specified by the corporation or to lay or place under or around any sewers or apparatus cement concrete or any other like substance as may be specified by the corporation Provided that if the corporation shall not within the said period of twenty-eight days give any such notice in writing to the Whitworth Company as aforesaid they shall be deemed to have approved the said intended works:
- (6) If within twenty-eight days after the receipt of the said plan section and description the corporation shall give notice to the Whitworth Company of their intention themselves to execute the whole or any of the protective works referred to in the last preceding clause it shall be lawful for the corporation so to do and the cost reasonably incurred by them in so doing as certified by the city engineer shall on demand be repaid to the corporation by the Whitworth Company and shall carry interest at five pounds per cent. per annum from and after the expiration of one calendar month after the certificate and demand shall be delivered to the Whitworth Company until the date of payment thereof:
- (7) If by reason or in consequence of the interference with the said portion of Chatham Street or the purple land or the exercise of the powers of the intended Act or the execution of any works under this agreement any sewer or apparatus situate in or under or near any street (other than a sewer or apparatus for which another sewer or apparatus shall have been provided in accordance with this agreement) shall be reasonably certified by the city engineer to be derelict the Whitworth Company shall pay to the corporation such a reasonable sum as the city engineer shall certify to be the value of—

(a) any sewer or apparatus so certified to be derelict;
and

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(b) any drain sewer or apparatus connected with the said sewer or apparatus and used exclusively for the purpose of serving any premises by means of the sewer or apparatus aforesaid ;

and also the cost where incurred by the corporation (as so certified as aforesaid) of the cutting-off of every such sewer or apparatus from any other sewer or apparatus and of and incidental to any other works or things rendered necessary in consequence of any sewer or apparatus being rendered derelict by the interference with the said portion of Chatham Street or the purple land or the exercise of the powers of the intended Act or the execution of any works under this agreement All and every such sewer or apparatus shall upon payment as aforesaid (and as regards any such sewer apparatus or part thereof situate in under or on the purple land subject to the provisions (mutatis mutandis) of subclause (b) of clause (3) of Article 3) become the property of the Whitworth Company but the Whitworth Company shall not remove or otherwise interfere with any sewer or apparatus without the consent of the corporation before the value and costs (if any) as certified by the city engineer as aforesaid shall have been paid by the Whitworth Company to the corporation including interest at the rate of five pounds per cent. per annum thereon until the date of payment in case the same be not paid within one calendar month after the certificate and demand shall be delivered to the Whitworth Company :

(8) The reasonable expenses of all repairs and renewals of any sewer or apparatus or any works connected therewith as certified by the city engineer which may at any time within twelve calendar months from the completion of the works of the Whitworth Company under this agreement or the intended Act in on or adjacent to any street be rendered necessary by or in consequence of the acts or defaults of the Whitworth Company their contractors agents workmen or servants or any person in the employ of them or any of them or rendered necessary by reason of any subsidence resulting from the works of the Whitworth Company whether during the construction of such works or at any time within twelve calendar months thereafter shall be borne by the Whitworth Company and paid by them on demand to the corporation :

(9) The rails with suitable guard rails or a tramway section of rail to which the paving abuts on both sides thereof as the

Whitworth Company may elect of the proposed Railway No. 1 in the said portion of Chatham Street and the Railway No. 1 and siding or turnout on the purple land shall be laid down and maintained by the Whitworth Company upon concrete foundations and shall be so constructed as to provide efficiently for the protection of all underground works of the corporation and so as to enable the corporation to obtain access thereto for the purpose of inspection maintenance and diversion thereof and otherwise as may be required by the corporation. The work shall at all times be executed and maintained by the Whitworth Company to the reasonable satisfaction of the city engineer: A.D. 1917.

- (10) The top of the rails of the proposed Railway No. 1 in the said portion of Chatham Street shall not be permitted at any time to project above or to be sunk below the level of the surface of Chatham Street adjacent thereto (except as far as such projection or sinking may be caused by any alteration or want of repair of such surface not occasioned by the act or default of the Whitworth Company) and the Whitworth Company shall indemnify the corporation against all claims and demands in respect of any damage or accident which may arise from any decay disrepair dangerous or defective state of the proposed Railway No. 1 in the said portion of Chatham Street or of the plates and rails thereof or any matter or thing connected therewith unless such dangerous or defective state is caused as aforesaid:
- (11) The Whitworth Company shall at all times after the construction of the proposed Railway No. 1 properly maintain and keep in repair the paving and flagging of the portion of Chatham Street between the said rails and for a distance of two feet six inches on either side thereof. The Whitworth Company shall not permit any rolling stock to stand in the portion of Chatham Street coloured yellow on the signed plan A longer than may be necessary to allow the ordinary traffic in Clayton Lane to pass or for any reason beyond the control of the Whitworth Company:
- (12) The Whitworth Company shall save harmless and keep the corporation and their officers and servants indemnified from and against all damages and costs in respect of every and all accidents damages and injuries happening in relation to the working or use of the proposed Railway No. 1 or to any apparatus of the corporation in the said portion of Chatham Street through the act or default of the Whitworth Company or of any person in their employment or in respect of any

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nuisance vibration trespass or damage done or caused by engines carriages or wagons of the Whitworth Company or by any of the servants or persons employed by the Whitworth Company in or upon the proposed Railway No. 1 in the said portion of Chatham Street or by any wilful or negligent acts of the Whitworth Company or their servants or employees in or about the proposed Railway No. 1 in the said portion of Chatham Street:

- (13) The provisions in clauses (4) (6) and (9) of Article 1 under the heading "Level crossing of Clayton Lane" shall apply mutatis mutandis to the working and use of the proposed Railway No. 1 in the said portion of Chatham Street.

THE LAND OF THE CLAYTON COMPANY COLOURED PURPLE AND RED ON
THE SIGNED PLAN A.

Article 3 In the construction and maintenance by the Whitworth Company of the part of the proposed Railway No. 1 and the siding or turnout connected therewith and in the working and use by the Whitworth Company of such railway and siding or turnout and of the Clayton Company's private railway the following provisions shall as between the Whitworth Company and the Clayton Company apply and have effect (that is to say):—

- (1) The Whitworth Company shall not without the consent of the Clayton Company take or acquire any of the lands of the Clayton Company but the Whitworth Company may purchase and the Clayton Company shall if required by the Whitworth Company grant to the Whitworth Company the easement or right of constructing and of maintaining working and using in perpetuity (subject to the provisions of this agreement and of the intended Act) the said part of the proposed Railway No. 1 and siding or turnout:
- (2) The Whitworth Company shall construct and maintain the proposed Railway No. 1 on the purple land as a single line and may also construct and maintain (subject to the reservations and rights of the corporation under the Clayton Company's agreement) a single line siding or turnout commencing at a junction with the proposed Railway No. 1 at the east end of the purple land and proceeding in a westerly direction through the purple land and the land coloured red on the signed plan A (herein-after referred to as "the red land") (being other part of the said portion of Chatham Street which is referred to in Article 1 of the Clayton Company's agreement) and terminating at a junction

with the Clayton Company's railway at the west end of the red land. Such construction and maintenance of Railway No. 1 and siding or turnout shall be in accordance in all respects with plans sections and specifications to be submitted to and reasonably approved by the city engineer and by the Clayton Company's engineer and shall be carried out under the superintendence and to the reasonable satisfaction of such engineers. Provided that if the Clayton Company shall not in writing intimate to the Whitworth Company their approval or disapproval of the said plans sections and specifications within twenty-eight days after the submission thereof to them they shall be deemed to have approved thereof. Provided also that the provisions of clause (3) of Article 2 hereof shall apply mutatis mutandis to the said siding and turnout: A.D. 1917.

(3) The Clayton Company shall retain and have the rights following (namely):—

(a) The right if and whenever they think fit at their own cost to divert or alter the position or gradient of the proposed Railway No. 1 and siding or turnout on the purple land or the red land or any part or parts of such railway and siding or turnout or of the private railway of the Clayton Company or of the junctions or junction lines connecting the Clayton Company's private railway with the proposed Railway No. 1 and siding or turnout. Provided that in the case of and before commencing such diversion or alteration the Clayton Company shall substitute for the line of railway or junction and junction lines diverted or altered another line of railway or junction and junction lines in such manner as to prevent any suspension of the traffic of the Whitworth Company and as not to put the Whitworth Company to any unnecessary inconvenience during the course of the alteration or after the completion thereof;

(b) The right to construct repair and maintain subject to the provisions of the Clayton Company's Act either across under or over the purple land or so much of the Clayton Company's private railway and siding or turnout as is laid on the red land or any part or parts thereof such buildings roads bridges channels communications pipes chemical mains lines of rails waterways telephone or telegraph posts and wires and electric cables and tubes sewers and drains of such width and dimensions as they may think proper and to use and authorise the working

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and using of such buildings roads bridges channels communications lines of rails waterways telephone and telegraph posts and wires and electric cables and tubes sewers and drains in such manner in all respects as they may think fit provided that any such right shall be so exercised as not unreasonably to obstruct or interfere with the traffic of the Whitworth Company;

(c) The right of using so much of the proposed Railway No. 1 on the purple land and siding or turnout for the purposes of giving access to any sidings or lines that the Clayton Company may in their discretion lay down for the accommodation of their traffic but not so as to interfere in any way with the use by the Whitworth Company of the proposed Railway No. 1 or to put the Whitworth Company to any unnecessary inconvenience Any junction or junctions put in by the Clayton Company in order to connect any such sidings or lines shall be laid and maintained by the Clayton Company;

(d) The right to recover from the Whitworth Company the costs and expenses reasonably incurred by the Clayton Company in diverting maintaining and renewing any such existing channels communications pipes chemical mains lines of rails waterways telephone or telegraph posts and wires and electric cables and tubes sewers and drains as may be in on or under the purple land or the red land when the proposed Railway No. 1 and siding or turnout is constructed (if and so far as such costs and expenses are rendered necessary by the works of the Whitworth Company) and such costs and expenses shall be paid by the Whitworth Company to the Clayton Company on demand and shall carry interest at five pounds per cent. per annum from the date of demand if not paid within one calendar month after demand:

(4) The top of the rails of the proposed Railway No. 1 and siding or turnout on the purple land or the red land shall not be permitted at any time to project above or be sunk below the level of the surface of the purple land adjacent thereto (except so far as such projection or sinking may be required to effect the junction with the Clayton Company's railway) and as between the Clayton Company and the Whitworth Company the Whitworth Company shall be responsible for all damages and accidents arising from any decay disrepair dangerous or defective state of the proposed Railway No. 1 and siding or turnout on the purple land or the red land

or of the plates and rails thereof or any matter or thing connected therewith and shall indemnify the Clayton Company against the same and all claims and demands in respect thereof: A.D. 1917.

- (5) The Whitworth Company shall at all times after the construction of the proposed Railway No. 1 and siding or turnout properly maintain and keep in repair the paving and flagging of the portion of the purple land and the red land between the said rails and for a distance of two feet six inches on either side thereof and shall not use the purple land or the red land for any other purpose than the construction maintenance working and use of the proposed Railway No. 1 and siding or turnout:
- (6) The Whitworth Company shall not conduct any shunting operations nor permit any rolling stock to stand on the purple land or any part of the private railway or siding or turnout of the Clayton Company between the hours of 6 a.m. and 6 p.m. but between the hours of 6 p.m. and 6 a.m. the Whitworth Company subject to the provisions of clause (5) of Article 9 may conduct shunting operations and permit their rolling stock to stand on the purple land and private railway and siding or turnout of the Clayton Company:
- (7) The Whitworth Company will at their own expense if required by the Clayton Company so to do provide and erect and at all times maintain to the reasonable satisfaction of the Clayton Company a proper gate in the barrier B on the sheet No. 1 of the deposited plans of the Clayton Company's Act so as effectually to prevent all trespass from Chatham Street on to the purple land and private railway of the Clayton Company and such gate shall if required by the Clayton Company be kept closed and locked by the Whitworth Company at all times when not open for use by the Clayton Company or Whitworth Company and the Whitworth Company shall give to the Clayton Company a key of such gate for the use of themselves their servants and agents:
- (8) The Clayton Company shall have the right to purchase from the Whitworth Company at a reasonable price to be determined in case of dispute by the city engineer whose decision shall be final any sewer or apparatus or part thereof situate in under or on the purple land which may become the property of the Whitworth Company under the provisions of clause (7) of Article 2 of this agreement:

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- (9) Any costs and expenses which by reason or in consequence of the construction and maintenance of the proposed Railway No. 1 and siding or turnout or the working or use of the said railway and siding or turnout by the Whitworth Company the Clayton Company may incur in connecting the drains of any building on the purple land or other land of the Clayton Company with any sewer of the corporation shall be repaid by the Whitworth Company to the Clayton Company on demand and shall carry interest at five per cent. per annum if not paid within one calendar month after demand.

WIDENING OF AND ADDITIONS TO BRANCH RAILWAY OF THE
CORPORATION.

Article 4—(1) The railway widening thirdly described in the clause of the Bill of which the marginal note is "Power to make railways and railway widening" shall be constructed by the Whitworth Company in harmony as regards structure and materials with the existing branch railway of the corporation and such widening shall form part of such branch railway and be the property of and (subject to the provisions of this agreement) be maintained by the corporation. The references in this agreement to the corporation's branch railway shall (where the context so requires or admits) be construed as including the said widening when completed.

(2) Where such widening will cross Stuart Street and Bank Street respectively the modes of construction the headways the widths between the abutments the parapets and other details of the extended bridges shall conform as far as possible in every respect with the existing bridges carrying the branch railway over those streets. Provided that if and where reasonably necessary the existing brick and steel viaducts and brick and steel bridges carrying the branch railway of the corporation and the widening thereof shall be strengthened by the corporation at the expense of the Whitworth Company in order to accommodate and carry with safety the weights of the traffic of the Whitworth Company. Such expense shall be paid by the Whitworth Company to the corporation on demand and shall carry interest at five pounds per cent. per annum if not paid within one month after demand.

(3) In constructing the said widening and extended bridges with their abutments and works the Whitworth Company shall carry the foundations thereof to such depths as the corporation may reasonably approve and shall adopt such measures as the city engineer may direct for the protection of the 30-inch and 4-inch water mains in Stuart Street the 24-inch water main in Bank Street and all other underground works of the corporation in those streets respectively.

(4) The undersides of the extensions of the said bridges over Stuart Street and Bank Street respectively shall be rendered water-tight and constructed drop dry and properly provided with efficient gutters and downspouts and connected with the surface water drains or sewers to the reasonable satisfaction of the city engineer. The said gutters and downspouts shall not project in front of the building lines. A.D. 1917.

(5) Before the Whitworth Company shall exercise the powers of the intended Act of using the private railway of the Clayton Company and the branch railway of the corporation or either of those railways there shall be constructed and completed by the Whitworth Company to the reasonable satisfaction of the corporation---

(a) The length of the said railway widening between the points marked A and B upon the plan (herein-after referred to as the signed plan "B") signed in triplicate by the town clerk and by the secretaries of the Clayton Company and the Whitworth Company respectively and of which one copy has been deposited with the town clerk another copy with the secretary of the Clayton Company and the other copy with the secretary of the Whitworth Company (which length of widening between such points A and B measures four hundred and fifteen lineal feet or thereabouts);

(b) The length of the said railway widening between the points marked B and C upon the signed plan "B" (which length measures one hundred and eighty-five lineal feet or thereabouts); and

(c) Such further works and improvements as shall be agreed between the corporation the Clayton Company and the Whitworth Company (which further works and improvements are herein-after referred to as "the additions").

(6) The length of the said railway widening between the points marked C and D on the signed plan "B" (which length measures three hundred and sixty-five lineal feet or thereabouts) shall be constructed by the Whitworth Company as soon as practicable after a notice requiring such construction shall be served by the corporation under the hand of the town clerk upon the Whitworth Company.

(7) The provisions of this agreement applicable to the said widening between the points A and C on the signed plan "B" shall extend (mutatis mutandis and so far as applicable) to the additions and the additions shall form part of the branch railway of the corporation and be the property of and (subject to the provisions of this agreement) be maintained by the corporation.

(8) The cost of the construction of the length of the said widening between the said points A and B on the signed plan "B" and the cost of the additions shall be borne exclusively by the Whitworth Company.

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(9) The cost of the lengths of the said widening between the points B and C and C and D on the signed plan "B" shall in the first instance be borne by the Whitworth Company and one-half thereof as reasonably certified by the engineer of the Whitworth Company shall subsequently be repaid by the corporation to the Whitworth Company. It shall be optional with the corporation either to repay their half of such cost immediately after the delivery to them of the certificate of the amount thereof or to defer its payment for such period not exceeding five years as they may determine with power for the corporation to pay within the said five years by half-yearly or annual instalments if they think fit. Provided that if such half of cost be not paid immediately after the delivery of the said certificate the corporation shall pay to the Whitworth Company interest on the amount for the time being unpaid at the rate of five pounds per centum per annum such interest to commence one month after the date on which the certificate as to the share of the corporation of such cost is delivered to the corporation and to be paid half-yearly the first of such payments of interest to be made upon the expiration of six months from the said date.

(10) Before commencing the construction of the said railway widening extensions of bridges abutments and works and the additions the Whitworth Company shall deliver to the city engineer plans sections elevations and specifications thereof for the reasonable approval of the corporation and shall not commence such construction until the plans sections elevations and specifications thereof shall have been approved by the corporation or in case of difference determined by arbitration as herein-after provided. Provided always that if the corporation shall fail to approve or disapprove of such plans sections elevations and specifications within twenty-eight days after the same have been delivered to the city engineer then they shall be deemed to have approved the same.

(11) The Whitworth Company shall construct and execute the said railway widening extensions of bridges abutments and works and the additions in accordance with the plans sections elevations and specifications approved or determined as aforesaid and under the reasonable superintendence and to the reasonable satisfaction of the corporation.

(12) The Whitworth Company shall not in the construction of the said railway widening and extensions of bridges cause any interruption of the passage of the traffic over and along Stuart Street and/or Bank Street further or other than may be from time to time reasonably sanctioned by the corporation and shall do as little damage as may be to the said streets and shall at their own expense in a proper and workmanlike manner and to the reasonable satisfaction of the corpora-

tion make good all damage or injury whatsoever which shall be caused to Stuart Street and/or Bank Street by the construction of the said railway widening and extensions of bridges as aforesaid. A.D. 1917.

(13) If the Whitworth Company shall neglect or refuse to make good any such damage or injury as aforesaid for the space of twenty-four hours after receiving notice in writing from the corporation requiring them so to do then the corporation may execute and do all works and things necessary for making good the same and the Whitworth Company shall within fourteen days after demand under the hand of the town clerk pay to the corporation all the reasonable costs charges and expenses incurred by the corporation in executing and doing any such works and things as aforesaid.

(14) The Whitworth Company shall during the execution and until the completion of the said railway widening and extensions of bridges make and carry into effect such arrangements as the corporation may prescribe for lighting and watching any portion of Stuart Street and/or Bank Street interfered with and affected thereby and as may be reasonably necessary to prevent danger or accident to persons animals and vehicles using the said streets or either of them.

(15) The Whitworth Company shall not in making working or using the said extensions of bridges and the works connected therewith in any manner hinder or interfere with the free uninterrupted and safe working of the traffic on Stuart Street and/or Bank Street and if at any time hereafter the free uninterrupted and safe working of the traffic thereon is obstructed hindered or interfered with by reason of the said extensions of bridges and works the Whitworth Company shall pay to the corporation such damages and losses (if any) as the corporation may actually sustain by reason thereof but nothing contained in this clause shall prevent the Whitworth Company from constructing the said extensions of bridges and works in accordance with the intended Act and this agreement.

(16) The Whitworth Company shall be responsible for and make good to the corporation and to the Clayton Company all costs losses damages and expenses which may be occasioned to the corporation or to the Clayton Company or to the said traffic by reason of any defect in the construction of the said extensions of bridges and works or of any negligent act or omission of the Whitworth Company or of any person in their employ or of their contractors and the Whitworth Company shall effectually indemnify and hold harmless the corporation and the Clayton Company from all claims and demands upon or against them by reason of such defective construction or of any such negligent act or omission.

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(17) Where any work in the construction of the said railway widening and/or extensions of bridges will involve any interference with the traffic on any highway the Whitworth Company shall (except in cases of emergency) give to the corporation not less than forty-eight hours' notice in writing before commencing to execute such works and the Whitworth Company shall in executing such works conform to such reasonable requirements as may be made by the corporation.

(18) The Whitworth Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the said railway widening and/or extensions of bridges or upon any abutment building or hoarding erected in connexion therewith and whether during or after construction of the said railway widening and/or extensions of bridges any placards or advertisements except such as have been reasonably approved in writing by the corporation under the hand of the town clerk and if any such placard or advertisement is affixed or exhibited without such approval the corporation and their authorised officers may remove the same at the cost of the Whitworth Company.

(19) The Whitworth Company shall pay and indemnify the corporation against the cost of making good any damage to or subsidence of the highway or any sewers drains water mains pipes or apparatus or gas lamps mains or pipes or electric cables wires pipes or apparatus or other works belonging to or repairable by the corporation which may result from the construction of the said railway widening extensions of bridges or works during the construction thereof or within twelve calendar months after the completion thereof.

(20) If at any time after completion of the widenings and extension of the branch railway of the corporation herein-before provided for it should in the opinion of the corporation be necessary or desirable to double such branch railway between the loop or passing place at the point marked H on the signed plan A and the sidings herein-after referred to adjoining the Lancashire and Yorkshire Railway the corporation shall provide and raise to formation level the land requisite for such doubling and where necessary shall construct a brick viaduct therefor and shall provide and execute thereon the necessary rails sleepers and other matters necessary for such doubling and the Whitworth Company shall and will pay to the corporation on demand one-half the cost of such doubling of such branch railway including the cost of raising the land to formation level and the said brick viaduct but excluding any charge for the land itself which shall remain the property of the corporation. The subsequent cost of maintaining renewing working and using the branch railway as so doubled shall form part of the pooled expenses of operating such branch railway under the provisions herein-after contained.

THE JUNCTIONS.

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First As to the Junctions of the Corporation's Branch Railway with the Clayton Company's Private Railway.

Article 5—(1) The junctions and junction lines connecting the corporation's branch railway and the additions and the private railway of the Clayton Company together with all appliances necessary and proper for the safe use and working thereof shall be constructed by the corporation at the joint cost of the Clayton Company and the Whitworth Company in accordance with plans sections and specifications to be furnished by the Clayton Company to the city engineer and reasonably approved by the corporation and such junctions shall be at the point marked C upon the signed plan A or at such other convenient point adjacent thereto as may hereafter be agreed between the corporation and the Clayton Company. Such cost shall be paid by the Clayton Company and the Whitworth Company to the corporation on demand and shall carry interest at five pounds per cent. per annum if not paid within one calendar month after demand.

(2) The corporation shall maintain and keep in good condition and repair the said junctions and junction lines so far as the same are situate upon the property of the corporation and the Clayton Company and the Whitworth Company shall jointly in proportion to the tonnage of their respective maximum traffics as allowed by this agreement and the Clayton Company's agreement pay to the corporation on demand in each year such sum as the city engineer shall certify as the costs reasonably incurred by the corporation in such maintenance and repair in that year.

(3) So long as the junctions and junction lines shall remain the Clayton Company and the Whitworth Company will respectively pay to the corporation on the first day of January in every year the sum of one shilling by way of rent or acknowledgment for the use of so much of their land as shall be occupied by the said junctions and junction lines (which land notwithstanding such occupation and however long the same may continue shall always remain the property of the corporation) and the first payment of such rent or acknowledgment shall be considered to have become due and payable on the first day of January 1917.

(4) The corporation reserve to themselves the right of using so much of the said junctions and junction lines as is upon their property for the purpose of giving access to existing sidings or lines or to any other siding or sidings or line or lines they may in their discretion lay down for the accommodation of themselves or of any other person firm or company but not so as to interfere in any way with the use by the

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(5) If the corporation shall at any time during the continuance of this agreement require to construct any additional or other works over or otherwise to use the land belonging to them upon which the said junctions and junction lines or any part thereof are constructed and laid down they shall be at liberty to take up and remove the whole or any part of the said junctions and junction lines so far as they are situate on the land of the corporation and to relay the same or such parts thereof as may be taken up in an equally convenient position and manner and so as not unreasonably to interfere with or suspend the use of their said line by the Clayton Company and/or the Whitworth Company or put them respectively to any unnecessary inconvenience.

(6) The Clayton Company and the Whitworth Company will at their joint expense (such expense being contributed in proportion to the tonnage of their respective maximum traffics) if required by the corporation so to do provide and erect and at all times thereafter maintain to the reasonable satisfaction of the city engineer proper gates and fences in such positions as the city engineer shall reasonably approve so as effectually to prevent all trespass from the private railway of the Clayton Company on to the corporation's branch railway and property and the additions and shall pay and discharge all costs charges and expenses whatsoever which the corporation may be put to by reason of any trespass upon the corporation's branch railway or property and the additions occasioned by the insufficiency or defect of and in the said gates and fences and indemnify the corporation against any payment or loss in respect thereof and such gates shall if required by the corporation be kept closed and locked by the Clayton Company and the Whitworth Company at all times when not open for use by the Clayton Company and/or the Whitworth Company of the Clayton Company's private railway.

Secondly As to the Junctions of the Clayton Company's Private Railway with the Whitworth Company's Private Railway and Siding or Turnout.

Article 6—(1) The junctions and junction lines connecting the private railway of the Clayton Company with the private railway of the Whitworth Company and the siding or turnout together with all appliances necessary and proper for the safe use and working thereof shall be constructed by the Clayton Company at the cost of the

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Whitworth Company in accordance with plans sections and specifications to be furnished by the Whitworth Company to the Clayton Company and reasonably approved by the Clayton Company and the junction between the said private railways shall be constructed at the point marked B on the signed plan A or at such other convenient point adjacent thereto and within the limits of deviation of the Whitworth Company's Act as may hereafter be agreed between the Clayton Company and the Whitworth Company and such cost shall be paid by the Whitworth Company to the Clayton Company on demand and shall carry interest at five pounds per cent. per annum if not paid within one calendar month after demand.

(2) The Clayton Company shall maintain and keep in good condition and repair the said junctions and junction lines and the Whitworth Company shall pay to the Clayton Company on demand in each year such sum as the Clayton Company's engineer shall certify as the costs reasonably incurred by the Clayton Company in such maintenance and repair in that year.

(3) The Clayton Company reserve to themselves the right of using the junctions and junction lines for the purpose of giving access to any sidings or lines they may in their discretion lay down for the accommodation of their traffic but not so as to interfere in any way with the use by the Whitworth Company of the said junctions and junction lines or the private railway of the Clayton Company or the proposed Railway No. 1 or to put the Whitworth Company to any unnecessary inconvenience.

SIDINGS AND LOOP.

Article 7—(1) Before exercising any of the powers of running over or using any part of the branch railway the additions the junction lines or the sidings of the corporation or any part of the private railway of the Clayton Company in accordance with the provisions herein-after contained the Whitworth Company shall at the cost of the Whitworth Company construct and complete the junction lines and additional sidings which are coloured in full green lines upon the plan (herein-after referred to as "the signed plan C") signed in triplicate by the town clerk and the respective secretaries of the Clayton Company and the Whitworth Company and of which one copy has been deposited with the town clerk another copy with the secretary of the Clayton Company and the other copy with the secretary of the Whitworth Company or such of them as the Lancashire and Yorkshire Railway Company (herein-after called "the railway company") may from time to time require for the proper conduct of the authorised traffics of the corporation the Clayton Company and the Whitworth Company Such

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A.D. 1917. additional sidings shall be constructed in accordance with detailed plans sections and specifications to be submitted to and reasonably approved by the corporation the Clayton Company and the railway company and under the superintendence and to the reasonable satisfaction of the city engineer and the engineer of the railway company and when constructed shall be the property of and (subject to the provisions of this agreement) be maintained repaired and from time to time renewed by the corporation but such additional sidings may be occupied and used by the corporation and/or the Clayton Company for the purpose of dealing with their respective traffics but so as not to prejudice or affect unreasonably the traffic of the Whitworth Company.

(2) The land for such additional sidings shall be provided and raised to formation level by the corporation but the rails sleepers and other matters required therefor and for the junction thereof with the Lancashire and Yorkshire Railway and the necessary additional signals signal cabin locking gear and electrical and other appliances for governing or regulating the use and working of such sidings shall be provided by and at the sole cost of the Whitworth Company The subsequent expense of maintaining the same shall form part of the pooled expenses of operating the branch railway of the corporation herein-after provided for Such sidings shall be provided and completed as and when the land is available therefor The existing and future sidings shall be provided at the east end thereof with an approach junction from the Lancashire and Yorkshire Railway so that the traffic to and from such sidings may be handled at either or both ends thereof.

(3) If for the purpose of providing such additional sidings it should become necessary to divert the footpath shown upon the signed plan A and if the necessary legal formalities for that purpose are duly observed such diversion to a position equally convenient for the public shall be carried out by the corporation at the sole cost of the Whitworth Company Such cost shall include the formation of a cindered footpath nine feet wide and the provision of a brick wall six feet high for protecting the diverted footpath from the tipped bank.

(4) It shall be lawful for the corporation at the joint cost of the Clayton Company and the Whitworth Company (such costs being contributed by the Clayton Company and the Whitworth Company in proportion to the tonnage of their respective maximum traffics) to make any reasonable loop line or passing place on the portion of the corporation's branch railway between Bank Street and the River Medlock and coloured green on the signed plan A which may be necessary to secure the smooth and efficient working of the traffics of the corporation the Clayton Company and the Whitworth Company over the corporation's branch railway but such loop line or passing place shall not be made until required by the exigencies of the traffics and until the land

necessary therefor is available at the formation level The cost of maintaining repairing renewing supervising and working such loop line or passing place shall form part of the pooled expenses of operating the corporation's branch railway under the provisions herein-after contained. A.D. 1917.

TRAFFIC.

Article 8 Subject as herein-after provided (and as to the junction lines between the railway company's main lines and the sidings of the corporation on the area coloured blue on the signed plan A (herein-after referred to as "the blue area") subject to the consent of the railway company) the Whitworth Company their servants officers and agents may run over and use with engines wagons trucks and vans the said junction lines between the Lancashire and Yorkshire main lines and the corporation sidings on the blue area and also so much of the corporation's branch railway and the additions as extends from the terminations of the aforesaid junction lines to the junctions between the corporation's branch railway and the private railway of the Clayton Company and may occupy and use for the purpose of receiving despatching standing marshalling and shunting their engines wagons trucks and vans the new sidings to be hereafter constructed on the blue area as herein-before provided and so much of the existing sidings and of any additional sidings which may be hereafter constructed on the blue area beyond those herein-before provided for as it will be necessary to pass over for the purpose of connecting such new sidings with the main line of the Lancashire and Yorkshire Railway together with such points and signals as may be necessary but subject (so far as may not otherwise be agreed between the corporation and the Whitworth Company respectively) to the following conditions (viz.):—

- (1) The traffic of the Whitworth Company must consist exclusively of materials minerals goods and things consigned to or despatched from the works of the Whitworth Company in the course of any business from time to time carried on thereon by the Whitworth Company and not of any other company's or firm's or person's materials minerals goods or things:
- (2) The Whitworth Company shall supply or procure the supply of all motive power and staff necessary for hauling receiving despatching marshalling shunting or otherwise dealing with their wagons trucks and vans:
- (3) The traffic of the Whitworth Company shall be worked over the corporation's branch railway between the hours of 6 p.m. and 6 a.m. and between such other two hours as the corporation with the approval of the Clayton Company may from time to time allow:

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- (4) The Whitworth Company's traffic shall not without the written consent of the corporation given under the hand of the city engineer exceed in amount in any one week a maximum of eight thousand tons (subject to a margin of ten per cent.) of materials minerals goods or things from the Lancashire and Yorkshire Railway to the works of the Whitworth Company and a maximum of four thousand tons (subject to a margin of ten per cent.) of materials minerals goods or things from the works of the Whitworth Company to the Lancashire and Yorkshire Railway and so far as practicable such traffic of the Whitworth Company shall be worked so as not to congest the lines sidings or junctions of the corporation. Provided always that the Whitworth Company's total traffic in any one year ending on the thirty-first day of March shall not exceed four hundred thousand tons of materials minerals goods or things from the Lancashire and Yorkshire Railway to the works of the Whitworth Company and two hundred thousand tons of materials minerals goods or things from the works of the Whitworth Company to the Lancashire and Yorkshire Railway:
- (5) The Whitworth Company in the reception despatch shunting and marshalling of their engines wagons trucks and vans upon the corporation sidings shall be subject to such directions as the general manager of the railway company shall from time to time give and subject thereto and in running over the corporation's branch railway shall conform to such reasonable general directions as the corporation shall from time to time give under the hand of the city engineer with a view to securing the priority of the corporation's traffic in all respects over the traffic of the Whitworth Company and subject to such priority the efficient and smooth working of the corporation's traffic over the corporation's branch railway sidings and junctions and in the case of the traffic of the Whitworth Company to secure that the working thereof shall not unreasonably interfere with the traffic of any other company firm or person running over or using the corporation's branch railway sidings and junctions or any of them or any part thereof by agreement with the corporation. The corporation may temporarily suspend the traffic of the Whitworth Company if in any case it is necessary so to do to ensure the order of precedence provided for in Article 18 of this agreement:
- (6) The Whitworth Company their servants officers and agents shall in using the corporation's sidings upon the blue area observe and perform and be bound by the byelaws and

regulations of the railway company which are now or shall be for the time being in force for the government and use of the railway company : A.D. 1917.

- (7) The officers servants and agents of the Whitworth Company shall at all times when upon the corporation's land branch railway or premises subject and without prejudice to such directions as may be given by the general manager of the railway company with respect to the reception despatch shunting and marshalling of their engines wagons trucks and vans upon the corporation sidings and subject to the due performance by the Whitworth Company of the byelaws and regulations of the railway company be under the control of the corporation's officer for the time being in charge of the corporation's branch railway and shall comply (subject as aforesaid and so far as the matter is not within the general regulations under the hand of the city engineer) with the regulations orders and directions of the corporation officer aforesaid and in the event of any of the several officers servants and agents of the Whitworth Company not complying therewith or otherwise misconducting themselves such officers servants and agents shall upon request of the corporation under the hand of the city engineer be prohibited by the Whitworth Company from coming upon the corporation's premises whilst they are being employed by the Whitworth Company :
- (8) The Whitworth Company shall keep the corporation indemnified against all damage and injury of every description whether to the property of the corporation or to their officers or servants or to other persons using the premises of the corporation which may occur in working the engines wagons trucks and vans of the Whitworth Company over the corporation's branch railway and sidings unless such damage or injury be caused by the neglect or misconduct of the servants of the corporation :
- (9) The Whitworth Company shall pay to the corporation for the maintenance and renewal and use of the railways junctions and sidings of the corporation including the railway widening the extensions of bridges and the additions herein-before referred to a rate (herein-after referred to as "the tonnage rate") for every ton or part of a ton of goods materials minerals and things passed by the Whitworth Company over the corporation's branch railway junctions and sidings or any of them or any part of them The amount of the tonnage rate shall be ascertained for each year ending the thirty-first March by dividing the total

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costs charges expenses and outgoings of every description (other than for engines engine staff fuel water grease &c. for locomotive power) borne incurred or expended in that year by the corporation in and incidental to the provision of the sites of and the ownership construction (other than the construction of the widening and the additions provided for by or referred to in Article 4 hereof headed "Widening of and additions to branch railway of the corporation") maintenance repair renewal supervision and working of the corporation's branch railway sidings and junctions (including the widening and the additions herein provided for or referred to) by the total number of tons of goods materials minerals or things passed over the corporation's branch railway sidings and junctions or any of them or any part of them in that year Any payments for tonnage rates due and payable by the Whitworth Company to the corporation under this article before the tonnage rate for the year in which the payment is made has been ascertained shall be calculated and made at the tonnage rate ascertained for the year next before that in which the payment is made and where no such rate has been ascertained at the rate of sixpence per ton but any payments so calculated and made shall be deemed to be payments on account and shall if less than or in excess of the amount which would be payable had the same been calculated and made at the tonnage rate for the year as subsequently ascertained be adjusted by such further payment by the Whitworth Company or allowance by the corporation as may be necessary as soon as the tonnage rate for the year in which the payments have been calculated and made has been ascertained Certificates by the city engineer of the amount of tonnage rates payable by the Whitworth Company shall be forwarded to the Whitworth Company quarterly in each year and shall be paid by the Whitworth Company within one calendar month of the receipt thereof and if not so paid shall carry interest at the rate of five pounds per cent. per annum until payment:

- (10) In case of the non-payment of any amount due under this article for a space of one calendar month after the same has become due the corporation may by notice in writing under the hand of the city engineer suspend the engines wagons trucks and vans of the Whitworth Company and their officers servants and agents from the use of the corporation's branch railway sidings and junctions and the additions until such amount has been paid:

- (11) The corporation reserve to themselves the right of admitting the traffic of any other company firm or person to the use of the corporation's branch railway sidings and junctions and the additions provided that such use does not prevent or unreasonably interfere with the use by the Whitworth Company of the corporation's branch railway sidings and junctions and the additions under the terms of this agreement: A.D. 1917.
- (12) All such traffic admitted by clause (11) of this article shall be included in the total tonnage of the corporation under clause (9) of this article.

Article 9 Subject as herein-after provided the Whitworth Company their servants officers and agents may run over and use with engines wagons trucks and vans the proposed junction between the Clayton Company's private railway and the proposed Railway No. 1 of the Whitworth Company and the siding or turnout subject to the conditions hereinafter in this article contained and the use by the Whitworth Company of their proposed Railway No. 1 and the power to run over and use the Clayton Company's private railway proposed to be conferred on the Whitworth Company by the intended Act shall also be subject to the like conditions (namely):—

- (1) The Company's traffic must consist exclusively of materials minerals goods and things consigned to or despatched from the Whitworth Company's works in the course of any business from time to time carried on therein by the Whitworth Company and not of any other company's or firm's or person's materials minerals goods and things and must not consist of any goods or materials of a competitive character with those at the date of this agreement manufactured by the Clayton Company:
- (2) The Whitworth Company's traffic shall be worked over the private railway of the Clayton Company and the proposed Railway No. 1 on the purple land and the siding or turnout referred to in clause (2) of Article 3 hereof between the hours of 6 p.m. and 6 a.m. and between such other two hours as the Clayton Company (with the approval of the corporation) may from time to time allow Provided nevertheless that the Whitworth Company shall not without the consent of the Clayton Company use the siding or turnout except between the hours of 6 p.m. and 6 a.m. Provided also that the Whitworth Company shall at their own expense provide reasonable lighting arrangements on the red land and the purple land during the times they are using the proposed Railway No. 1 the siding or turnout and the private railway of the Clayton Company:

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- (3) The Whitworth Company's traffic shall not without the written consent of the Clayton Company exceed in amount in any one week a maximum of eight thousand tons (subject to a margin of ten per cent.) of materials minerals goods or things from the Lancashire and Yorkshire Railway to the works of the Whitworth Company and a maximum of four thousand tons (subject to a margin of ten per cent.) of materials minerals goods or things from the works of the Whitworth Company to the Lancashire and Yorkshire Railway and so far as practicable such traffic shall be worked so as not to congest the private railway of the Clayton Company and no load shall exceed one ton and eight hundredweight per foot run measured over the total length of the vehicles or fifteen tons on any single axle the minimum distance between the axles of any such vehicle to be seven feet Provided always that the Whitworth Company's total traffic in any one year ending on the thirty-first day of March shall not exceed four hundred thousand tons of materials minerals goods or things from the Lancashire and Yorkshire Railway to the works of the Whitworth Company and two hundred thousand tons of materials minerals goods or things from the works of the Whitworth Company to the Lancashire and Yorkshire Railway :
- (4) The Whitworth Company shall supply or procure the supply of all motive power and staff necessary for hauling receiving and despatching or otherwise dealing with their wagons trucks or vans and shall use only such locomotives as the Clayton Company shall have previously reasonably approved of but this provision shall not exempt the Whitworth Company from any liability herein-after provided for :
- (5) The Whitworth Company in the use of the private railway of the Clayton Company and the proposed Railway No. 1 and siding or turnout on the purple land and the red land shall conform to such reasonable general directions as the Clayton Company may from time to time give under the hand of their secretary with a view to securing the priority of the Clayton Company's traffic in all respects over the Whitworth Company's traffic and to give the Clayton Company free access across the red land except when trains are passing and across the purple land from one part of their works to another and to the canal and so as to prevent interference with the working of a tramway proposed to be constructed between the Clayton Company's works and the Ashton Canal The Clayton Company may temporarily suspend the traffic of the

Whitworth Company if in any case it is necessary so to do for any of the purposes aforesaid but any suspension of traffic as aforesaid shall be reasonable and shall not unduly interfere with the traffic of the Whitworth Company In the event of any of the Whitworth Company's officers servants and agents not complying with such reasonable general directions as aforesaid or otherwise misconducting themselves such officers servants and agents shall upon request of the Clayton Company in writing be prohibited by the Whitworth Company from coming upon the Clayton Company's private railway or the purple land or the red land whilst they are being employed by the Whitworth Company: A.D. 1917.

- (6) The Whitworth Company shall pay to the Clayton Company for the use of the private railway of the Clayton Company and the easement or right of constructing maintaining and using the proposed Railway No. 1 and siding or turnout on the purple land and the red land a tonnage rate of sixpence per ton on the first two hundred thousand tons and one penny per ton on the remainder of all materials minerals goods and things of the Whitworth Company passing over the said private railway and in case the sum payable by the Whitworth Company under this clause shall not in any one year amount to five hundred pounds the Whitworth Company shall pay to the Clayton Company the difference between the tonnage rate so paid as aforesaid and the said sum of five hundred pounds The amount payable under this clause shall be payable quarterly commencing from the day when the Whitworth Company shall first use the private railway of the Clayton Company and shall be paid by the Whitworth Company within twenty-one days after a demand in writing has been made therefor and if not so paid shall carry interest at the rate of five pounds per centum per annum until payment In case of non-payment of the amount due under this clause for the space of twenty-one days after the same has become due the Clayton Company may suspend the Whitworth Company's engines wagons trucks and vans and their officers servants and agents from the use of the Clayton Company's private railway and junction until such amount has been paid.

GENERAL.

Article 10 The provisions contained in this agreement shall unless otherwise agreed between the parties extend and apply to the respective successors in title of the parties hereto to the respective estates and

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Article 11 Notwithstanding anything contained in this agreement or shown upon the plans and sections deposited in connexion with the Bill the Whitworth Company shall not (except so far as may be authorised by the corporation) interfere with any highway otherwise than as expressly provided for in this agreement.

Article 12 Nothing in this agreement contained shall be deemed to supersede or relieve the Whitworth Company from the obligation to observe and conform to the Acts of Parliament byelaws and regulations for the time being in force in the city of Manchester so far as they relate to the subject matters herein provided for and are not inconsistent with the provisions hereof.

Article 13 If in the opinion of the corporation it shall at any time or from time to time be necessary as the consequence of or in connexion with the construction or maintenance by the Whitworth Company of any work hereby or by the intended Act authorised to reconstruct or divert any existing sewers apparatus or work of the corporation or to construct any new works for the protection of the sewers apparatus or works of the corporation the corporation may cause the same to be executed and done and the reasonable cost thereof as certified by the city engineer shall be paid by the Whitworth Company to the corporation on demand together with interest at five pounds per cent. per annum if not paid within one calendar month after demand Provided that if the Whitworth Company shall consider that any requirements of the corporation under this clause are unreasonable the question shall be referred to arbitration.

Article 14 Any works to be executed by the Whitworth Company under the intended Act or this agreement whereby any sewer or apparatus of the corporation will or may be interfered with or affected shall be executed under the superintendence (if after reasonable notice from the Whitworth Company such superintendence shall be given) and to the reasonable satisfaction of the corporation.

Article 15 The Whitworth Company shall not make any claim against the corporation for compensation for any damage to the works or property of the Whitworth Company as a result of the bursting breakage or leakage of the water mains and pipes of the corporation or the fusing of the electric mains of the corporation which bursting breakage leakage and/or fusing shall not be occasioned by the act or default of the corporation.

Article 16 The Whitworth Company shall bear and on demand pay to the corporation the expense of the employment by the corporation of any inspectors signallers and/or watchmen that may reasonably be appointed by the corporation for inspecting signalling and/or watching any works of the Whitworth Company under this agreement and for managing and/or controlling the traffic on the highways with reference to and during the execution of such works but such superintendence by the corporation shall not relieve the Whitworth Company from liability for any accident which may be occasioned by or through the operations of the Whitworth Company or their contractors agents or workmen.

A.D. 1917.

Article 17 For the privilege of constructing maintaining working and using the level crossing in Clayton Lane and the proposed Railway No. 1 in Chatham Street the Whitworth Company shall pay to the corporation an annual rental of twenty pounds on the first day of January in every year the first of such payments to become due and payable on the first day of January next following the completion of the proposed Railway No. 1.

Article 18 If and when in the opinion of the corporation the exigencies of the various traffics so require or render desirable a traffic manager shall be appointed by the corporation who shall control and regulate the various traffics passing over the branch railway of the corporation including the widening and extension thereof and the additions with due regard to the following order of precedence (viz.):—

- (1) The traffic of the corporation:
- (2) The traffic of the Clayton Company:
- (3) The traffic of the British Carbide Factories Limited:
- (4) The traffic of the Whitworth Company:
- (5) Any other traffic which may be authorised by the corporation and as to traffic on the junction lines between the railway company's main lines and the sidings of the corporation on the blue area with the consent of the railway company.

The expenses connected with the office of the traffic manager shall form part of the pooled expenses of operating the branch railway of the corporation including the widening and extension thereof and the additions.

Article 19 In and for the purpose of ascertaining in any year the tonnage rate payable by the Clayton Company to the corporation under the provisions of subclause (i) of clause 34 of the Clayton Company's agreement no sum shall be included in the basis for such rate in respect of the cost of the sites and construction of the widening and extension of the corporation's branch railway and the additions and the additional sidings junction signals signal cabin locking

[Ch. liii.] *Sir W. G. Armstrong Whitworth* [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.

A.D. 1917. gear and electrical and other appliances herein provided for but any costs charges and expenses or outgoings borne incurred or expended by the corporation in and incidental to the maintenance repair renewal supervision and working of such widening and extension and the additions and the additional sidings junction signals signal cabin locking gear and electrical and other appliances shall be taken into account in arriving at the total costs divisible by the tonnage of goods passing over the corporation's branch railway junctions and sidings as provided by the said subclause.

Article 20 The Clayton Company being made parties to and executing this agreement shall not prejudice their rights in respect of any claims they may have either by statute or by common law in respect of any damage or injury done to their property or persons in their employment by reason of the working or user by the Whitworth Company their servants officers or agents of the proposed Railway No. 1 and siding or turnout the junction lines between the Lancashire and Yorkshire main lines and the corporation sidings on the blue area the corporation's branch railway sidings and junctions (including the widening and extension and the additions herein provided for or referred to) and the private railway of the Clayton Company or any of them or any part thereof.

Article 21 The Whitworth Company shall and will save harmless and keep the corporation and/or the Clayton Company and their respective officers and servants indemnified from and against all damage and costs in respect of any damage or injury to the corporation and/or the Clayton Company their private railway or other property or to any person in their respective employment and against all claims by the railway company the Great Central Railway Company Grimshaw Brothers and Company Limited or the British Recovered Rubber Company Limited or any other persons or companies arising out of or in connexion with the working or user by the Whitworth Company their officers servants and agents of the proposed Railway No. 1 the Clayton Company's private railway the corporation's branch railway sidings and junctions (including the widening and extension and the additions herein provided for or referred to) and the junction lines between such sidings and the Lancashire and Yorkshire main lines or any of them or any part thereof and whether such damage shall be caused by negligence accident nuisance vibration trespass or from any other cause whatsoever.

Article 22 In this agreement the expression "the city engineer" means—

- (a) As respects matters affecting the electricity undertaking of the corporation the chief electrical engineer for the time being of the corporation ;

- (b) As respects matters affecting the gas undertaking of the corporation the engineer for the time being of that undertaking; A.D. 1917.
- (c) As respects matters affecting the waterworks undertaking of the corporation the engineer for the time being of that undertaking;
- (d) As respects all other matters the engineer or surveyor for the time being of the corporation performing the duties of city engineer or city surveyor as the case requires.

Article 23 The costs of this agreement and the reasonable costs and expenses of the corporation and of the Clayton Company of and incidental to any parliamentary proceedings for the confirmation of this agreement or otherwise giving effect to the Whitworth Company's proposals shall be borne by the Whitworth Company.

Article 24 If under the provisions of this agreement any difference shall arise between the corporation on the one hand and the Clayton Company and/or the Whitworth Company on the other hand or between the Clayton Company and the Whitworth Company the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

Article 25 From and after the completion of the widening and extension of the branch railway of the corporation and of the additions provided for or referred to in clause (5) of Article 4 of this agreement subclause (c) of clause 34 of the Clayton Company's agreement shall be and the same is hereby determined to the intent that (subject to the order of precedence provided for in Article 18 hereof) the Clayton Company may thereafter have continuous use of the corporation's branch railway.

Article 26 As between the corporation and the Clayton Company it is hereby declared and agreed that subject to the modifications provided for in this agreement the Clayton Company's agreement is hereby confirmed.

Article 27 This agreement (except Article 23) is conditional on the Bill being passed authorising the construction of the intended railways and railway widening and the running over and use of the Clayton Company's private railway by the Whitworth Company and also on its being confirmed by Parliament and it is subject to such alteration as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration in such agreement it shall be competent

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A.D. 1917. to any party to withdraw the same (except Article 23 which shall remain in force) Provided that the Whitworth Company shall not withdraw this agreement without at the same time withdrawing the Bill.

IN WITNESS whereof the corporation and the Clayton Company and the Whitworth Company have hereunto affixed their respective common seals the day and year first before written.

The common seal of the corporation of the city of Manchester was hereunto affixed in pursuance of an order of the council of the said city in the presence of—

THOS. SMETHURST Lord Mayor.
 THOMAS HUDSON Town Clerk.



17282

The common seal of the Clayton Aniline Company Limited was hereunto affixed in the presence of—

X. CASTELLI }
 W. WELSH } Two Directors.

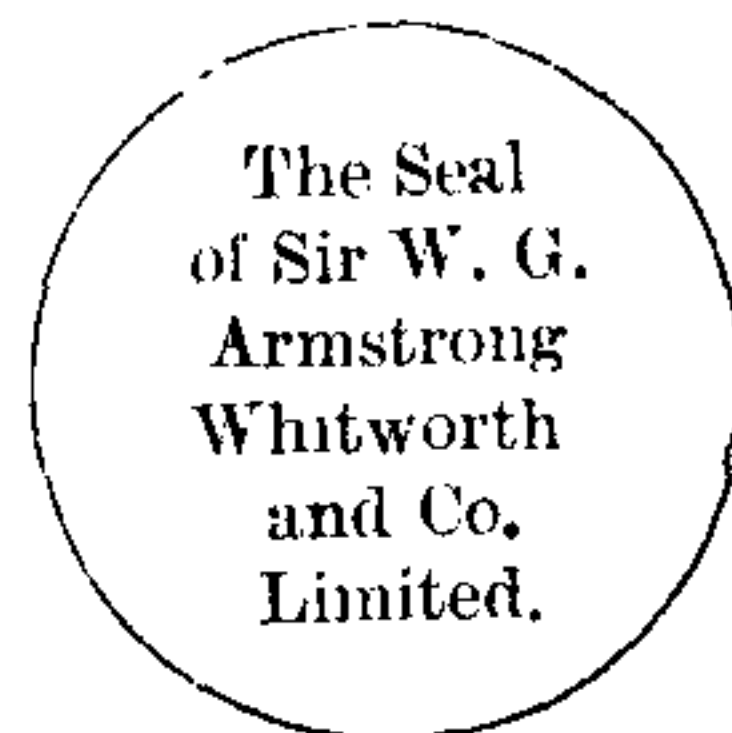
GEO. BIGGS Secretary.



The common seal of Sir W. G. Armstrong Whitworth and Company Limited was hereunto affixed in pursuance of a resolution of the board of directors in the presence of—

J. H. B. NOBLE }
 J. M. FALKNER } Two Directors.

A. HY. COCHRANE Secretary.



THE THIRD SCHEDULE.

A.D. 1917.

AGREEMENT made the twenty-seventh day of April one thousand nine hundred and seventeen between THE LANCASHIRE AND YORKSHIRE RAILWAY COMPANY (herein-after referred to as "the railway company") of the first part the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF MANCHESTER (herein-after called "the corporation") of the second part The CLAYTON ANILINE COMPANY LIMITED whose registered office is situate at Chatham Street Clayton Manchester aforesaid (herein-after called "the Clayton Company") of the third part and Sir W. G. ARMSTRONG WHITWORTH AND COMPANY LIMITED whose registered office is situate at Newcastle-upon-Tyne (herein-after called "the Whitworth Company") of the fourth part.

Stamp.

Two pounds
seven shillings
and
sixpence.

WHEREAS under an agreement dated the ninth day of May one thousand nine hundred and two made between the corporation and the railway company (herein-after referred to as "the principal agreement") certain junctions with the railway company's Ashton branch railway near Park Station in connexion with a branch railway constructed by the corporation from such railway to their Stuart Street Electricity Works were laid down together with certain sidings such junctions and sidings being delineated upon the plan annexed to the agreement now in recital and thereon coloured purple And by the said agreement it was (amongst other things) provided that in consideration of the corporation paying to the railway company during the continuance of the agreement by half-yearly payments the yearly sum of thirty-two pounds the railway company would maintain and keep in good condition the junctions and sidings coloured purple as aforesaid and all the signalling and other appliances necessary for the working of the said junctions and sidings And further that the said junctions and sidings should be used by the corporation for the purposes and accommodation of the traffic of the corporation exclusively unless with the consent of the railway company and then only upon such terms and conditions as should be agreed upon between the parties thereto and that the corporation would not permit any other person or persons to use the said junctions and sidings or any part thereof without the consent in writing of the railway company:

And whereas by the Clayton Aniline Company Limited (Railways) Act 1916 (herein-after referred to as "the Clayton Company's Act")

[Ch. liii.] *Sir W. G. Armstrong Whitworth* [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.

A.D. 1917. the Clayton Company were authorised to construct a line of railway giving access to their works by means of the branch railway of the corporation :

And whereas by an agreement dated the first day of August one thousand nine hundred and sixteen between the railway company the corporation and the Clayton Company which is set out in the Third Schedule to the Clayton Company's Act (herein-after referred to as "the Clayton Company's agreement") the Clayton Company were authorised to use the junctions and sidings the subject matter of the principal agreement in connexion with the sidings and branch railway of the corporation :

And whereas the Whitworth Company are promoting a Bill in the present session of Parliament intituled "*Armstrong Whitworth and Company (Railways)*" (herein-after referred to as "the Bill") for an Act to authorise them to construct a short railway in extension of the railway of the Clayton Company giving access to the works of the Whitworth Company from the Ashton branch of the railway company by means of the branch railway of the corporation and the said railway of the Clayton Company And by the said Bill it is proposed to confirm and make binding upon the parties thereto an agreement scheduled to the Bill dated the twenty-seventh day of April one thousand nine hundred and seventeen made between the corporation of the first part the Clayton Company of the second part and the Whitworth Company of the third part (herein-after referred to as "the scheduled agreement") :

And whereas the corporation have made application to the railway company in terms of clause 5 of the principal agreement for the railway company's consent to the Whitworth Company having the use of the junctions and sidings the subject matter of the principal agreement :

And whereas the railway company have agreed to give such consent on the terms and conditions herein-after set forth :

And whereas the Whitworth Company with the consent of the corporation and under and subject to the terms and conditions contained in the scheduled agreement also propose to put in a junction with the Ashton branch railway at the eastern end of the extension of the sidings of the corporation herein-after more particularly described and the railway company have agreed to such junction on the terms herein-after set forth NOW IT IS HEREBY COVENANTED DECLARED AND AGREED between and by the parties hereto in manner following (that is to say) :—

1—(1) Before exercising any of the powers of running over or using any part of the branch railway junction lines or sidings of the corporation in accordance with the provisions of the scheduled agree-

ment the following works shall be provided by the Whitworth Company A.D. 1917.
 under and subject to the provisions of the scheduled agreement:—

- (a) A new junction with the Ashton branch of the railway company Eastern junction.
 situate about a quarter of a mile west of Clayton Bridge
 Station delineated on the signed plan C herein-after referred
 to and thereon coloured yellow (herein-after referred to as
 the eastern junction) together with signals signal cabin
 locking gear and all electrical and other appliances necessary
 and proper for the safe use and working thereof shall be
 laid down and completed by the railway company at the
 cost in all respects of the Whitworth Company to give access
 to the sidings to be provided for the traffic of the Whitworth
 Company as herein-after mentioned and to the sidings and
 for the traffics of the corporation and the Clayton Company
 respectively :

The cost of such works (as estimated by the railway com-
 pany's engineer) shall be paid by the Whitworth Company
 to the railway company before any such works are com-
 menced The Whitworth Company shall also pay to the
 railway company the additional cost (if any) beyond the said
 estimated cost that may be incurred by the railway company
 in completing the said junctions signals signal cabin locking
 gear electrical and other appliances as certified by the
 engineer of the railway company and such amount shall be
 paid by the Whitworth Company to the railway company
 on demand If the actual cost of the junctions signals
 signal cabin locking gear electrical and other appliances
 shall not amount to the estimated cost paid as aforesaid
 the railway company shall forthwith repay the balance to
 the Whitworth Company :

- (b) The Whitworth Company shall construct and complete the
 junction lines and additional sidings which are coloured in
 full green lines upon the plan (in the scheduled agreement
 and herein-after referred to as "the signed plan C") signed
 in triplicate by the town clerk of the city of Manchester
 and by the respective secretaries of the Clayton Company
 and of the Whitworth Company a copy of which plan is
 hereunto annexed or such of them as the railway company
 may from time to time reasonably require for the proper
 conduct of the authorised traffics of the corporation the
 Clayton Company and the Whitworth Company Such Sidings to be
constructed
by sidings
owners.
 junction lines and sidings shall be constructed in accordance
 with detailed plans sections and specifications to be submitted
 to and reasonably approved by the railway company and

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and Company Limited (Railways) Act, 1917.*

A.D. 1917.

under the superintendence and to the reasonable satisfaction of their engineer and when constructed shall be the property of and (subject to the provisions of the scheduled agreement) be maintained repaired and from time to time renewed by the corporation to the reasonable satisfaction of the said engineer :

Sidings at
termination
of railway.

(c) The Whitworth Company shall also construct and complete on their own property at or near the termination of their proposed Railway No. 2 adequate siding accommodation for their traffic so as to prevent the sidings (to be constructed under subclause (b) of this clause) from becoming congested and causing the traffic of the Whitworth Company to be held back at other points on the railway of the railway company.

Arbitration.

(2) If any question or difference whatsoever shall hereafter arise between the railway company and the Whitworth Company and/or the corporation with respect to any of the provisions of this clause or anything to be done thereunder such question or difference shall be referred to a single arbitrator to be appointed in case of difference by the President of the Institution of Civil Engineers in accordance with and subject to the provisions of the Arbitration Act 1889.

Railway com-
pany consent
to user of
junction.

2 Subject as herein-after provided the railway company hereby consent and agree that the eastern junction and also the existing junction lines coloured purple on the signed plan C between the railway company's main lines and the corporation sidings coloured brown on the said plan together with such points and signals as may be necessary may be used for the purposes of the authorised traffics of the corporation the Clayton Company and the Whitworth Company respectively but subject (so far as may not otherwise be agreed between the parties hereto) to the following condition (namely):—

The respective traffics must consist exclusively of materials minerals goods and things consigned to or despatched from the works of the corporation the Clayton Company and the Whitworth Company respectively in the course of any business from time to time carried on thereon by them respectively and not of any other company's or firm's or person's materials minerals goods or things Provided that nothing herein contained shall prejudice or affect the arrangement which the railway company and the corporation have made with the British Carbide Factories Limited for the user by that company of the junctions and sidings referred to in the principal agreement or any similar arrangement which may hereafter be made with that or any other company firm or person Provided also that in carrying out any such arrangement the order of precedence of traffics prescribed by Article 18 of the scheduled agreement shall be observed.

3 In relation to the aforesaid use of the junctions and sidings referred to in the principal agreement for the purposes of their authorised traffic the Whitworth Company shall notwithstanding anything contained in the scheduled agreement or in the said intended Act of Parliament be subject to the provisions of the principal agreement mutatis mutandis and so far as the same are applicable and are not varied by this agreement.

A.D. 1917.
 Provisions of agreement of 9th May 1902 to apply.

4 The railway company shall afford reasonable facilities for receiving forwarding and delivering the Whitworth Company's traffic as defined in clause 2 of this agreement upon and from the sidings of the corporation on the area coloured blue on the plan (in the scheduled agreement and herein-after referred to as "the signed plan A") signed in triplicate by the said town clerk and the said secretaries a copy of which plan is hereunto annexed as if the junctions between the said sidings and the railway of the railway company had been constructed under the provisions of the Railways (Private Sidings) Act 1904.

Facilities by railway company.

5 Notwithstanding anything in this or the scheduled agreement contained the railway company shall not be under any obligation in the conveyance of traffic to or from the sidings of the corporation to observe any order of precedence of the traffics of the corporation the Clayton Company the British Carbide Factories Limited or the Whitworth Company.

Railway company not obliged to observe any order of precedence of traffic.

6 The consent of the railway company hereby given to the use by the Whitworth Company of the junctions and sidings referred to in the principal agreement is restricted to the particular consent hereby given.

Consent limited.

7—(a) As regards so much of the additional sidings referred to in clause 1 (1) (b) hereof as will be on land of the corporation not now at formation level the corporation shall only be liable to provide the site for such sidings as and when the land is available for the purpose and shall by the regular process of tipping ashes or other material from the corporation's electricity works in Stuart Street Manchester have been brought up to the requisite level Provided that notwithstanding this provision if the general manager of the railway company shall at any time request the corporation to provide further siding accommodation for full or empty wagons or for the efficient and economical working of the traffic to and from the branch railway of the corporation nothing in this clause contained shall be deemed to relieve the corporation from the obligation contained in clause 11 of the principal agreement.

Site for sidings to be provided by corporation only when land available.

(b) In lieu of the payment by the corporation to the railway company under clause 4 of the principal agreement of the sum of

Payment to railway company for use

[Ch. liii.] *Sir W. G. Armstrong Whitworth [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.*

A.D. 1917. one guinea per annum the corporation shall pay to the railway company the sum of two guineas per annum by way of rent or acknowledgment for the use of so much of the railway company's land as shall be occupied by the junctions junction lines and sidings therein and herein referred to and the last-mentioned sum shall be deemed to cover the use of so much of the railway company's land as shall be occupied by the said junctions junction lines and sidings on the railway company's land which land notwithstanding such occupation and however long the same may continue shall always remain the property of the railway company.

Alteration of
junction for
railway com-
pany's pur-
poses.

8 If and so often as the railway company require to widen alter or provide additional or other accommodation for or in connexion with their railway and for any of such purposes shall require the removal or alteration of the eastern junction and the junction lines and works or any part thereof they shall be at liberty to effect such removal or alteration but they shall not unreasonably interfere with the accommodation and traffics of the corporation the Clayton Company and the Whitworth Company respectively and the railway company shall in case of removal or alteration and if reasonably possible before interfering with the eastern junction and the junction lines and works provide with all reasonable despatch other junction junction lines and works in substitution therefor and such other junction junction lines and works if and when provided shall be in all respects subject to the terms and conditions of this agreement Provided that the railway company shall make such temporary arrangements as may be reasonably necessary to enable the traffics of the corporation the Clayton Company and the Whitworth Company to be maintained during the removal or alteration of the works as aforesaid.

Gates and
fences.

9 The corporation will if required by the railway company provide and erect and at all times thereafter maintain to the satisfaction of the railway company's engineer proper fences and gates adjoining the eastern junction to be constructed under the provisions of this agreement so as effectually to prevent all trespass upon the railway company's railway and property and shall pay and discharge all costs charges and expenses whatsoever which the railway company may be put to by reason of any trespass upon the said railway or property occasioned by the insufficiency or defect of and in the said fences and gates and indemnify the railway company against any payment or loss in respect thereof.

Maintenance
by railway
company of
eastern junc-
tion and pay-
ment there-
for.

10—(a) The eastern junction and the signals signal cabin locking gear and electrical and other appliances necessary and proper for the safe use and working thereof to be constructed by the railway company as aforesaid shall be repaired and maintained by them and as from the date when the said junction shall be brought into use for the purposes

of the authorised traffics of the corporation the Clayton Company and the Whitworth Company or any of them the corporation shall pay to the railway company during the continuance of this agreement by half-yearly payments the yearly sum of fifty-five pounds in respect of such maintenance and repair. A.D. 1917.

(b) Signalmen who shall be under the exclusive regulation of the railway company shall from time to time be appointed by the railway company to work the signals locking gear and telegraph apparatus in connexion with the eastern junction and the corporation shall from time to time on demand repay to the railway company all sums of money which shall from time to time be certified by the general manager of the railway company to have been necessarily expended by them for the uniform wages and stores of or otherwise in relation to every signalman appointed by the railway company as aforesaid. Signalmen.

(c) As from the date when the junction lines and sidings referred to in the principal agreement shall be used for the authorised traffic of the Whitworth Company the sum of fifty pounds per annum shall be substituted for the sum of thirty-two pounds per annum in clause 1 of the principal agreement as the payment to be made by the corporation in respect of maintenance of the said junctions and sidings coloured purple on the plan annexed to the said agreement and all the signalling and other appliances necessary for the working of the said junctions and sidings. Maintenance of junction constructed under 1902 Agreement.

11 Should the Board of Trade or the railway company at any time or times be dissatisfied as to the sufficiency of the signalling or other works provided in connexion with or consequent upon the existence of the eastern junction the corporation shall forthwith pay to the railway company any additional cost that may be incurred by them in complying with the requirements of the Board of Trade or in carrying out the requirements of the railway company in relation to any alteration therein or to any further or additional signal box locking gear telegraph telephone or other apparatus or other works the amount of such additional cost to be certified by the engineer of the railway company and paid by the corporation to the railway company on demand. Additional signalling &c.

12 Any junctions junction lines sidings or works laid down upon the area coloured blue upon the signed plan A (including the junction line between such area and the eastern junction) in connexion with the traffics of the corporation the Clayton Company and the Whitworth Company and over which the locomotives carriages or wagons of the railway company may travel (except such parts thereof as are to be maintained by the railway company) shall during the continuance of this agreement be kept in repair by the corporation to the reasonable satisfaction of the engineer of the railway company. Maintenance of sidings &c.

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and Company Limited (Railways) Act, 1917.

A.D. 1917.

Additional
siding ac-
commoda-
tion.

13 If and so often as in the opinion of the general manager of the railway company any further or additional siding accommodation shall be reasonably requisite or necessary for full or empty wagons for the traffics of the corporation the Clayton Company and the Whitworth Company the corporation shall forthwith upon the request in writing of the general manager of the railway company provide construct lay down and maintain upon land to be provided by them as aforesaid all such further or additional siding accommodation at their own expense Any difference as to the reasonableness of the railway company's requirements under this clause shall be settled by an arbitrator to be appointed by the Board of Trade.

Servants to
be under
control of
railway
company.

14 The corporation the Clayton Company and the Whitworth Company and the servants and workmen employed by them respectively shall at all times during the continuance of this agreement when upon the railway company's land be under the control of the railway company's Manchester district superintendent or other proper officer of the railway company and shall comply with the regulations orders and directions of the railway company and of their district superintendent or other proper officer and in the event of any of the said servants or workmen not complying therewith or otherwise misconducting themselves such servants or workmen shall upon the request of the railway company by their secretary or general manager be prohibited by the corporation the Clayton Company and the Whitworth Company respectively from coming upon the railway company's premises and the corporation the Clayton Company and the Whitworth Company respectively shall indemnify the railway company against all loss costs damages claims or demands made upon or incurred by them in consequence of such non-compliance or other misconduct.

Indemnity.

15—(a) The corporation the Clayton Company and the Whitworth Company respectively shall be responsible for and shall keep the railway company indemnified against all damages and injury of every description which may occur in working the traffic through on or over either of the said junctions junction lines or sidings caused by the neglect or misconduct of the corporation the Clayton Company and the Whitworth Company respectively or their servants or agents.

(b) The corporation the Clayton Company and the Whitworth Company respectively shall keep the railway company indemnified against all costs claims and demands in respect of any damage or injury caused by fire or otherwise to the trucks sacks sheets and ropes of the railway company or of any other company person or firm while such trucks sacks sheets or ropes are upon the railways or sidings of the corporation the Clayton Company and the Whitworth Company respectively unless such damage or injury be caused by the neglect or default or misconduct of the railway company or their servants.

16 The railway company shall have the absolute right of using such railways sidings and works as shall be constructed on the land of the railway company under the provisions of this agreement for the purpose of giving access to any other siding or communications they may think advisable to lay down and construct for the convenience and use of any other person or persons whomsoever. Provided nevertheless that the liberty of user granted by this clause shall not be exercised so as unreasonably to interfere with the respective traffics of the corporation the Clayton Company and the Whitworth Company and that the Whitworth Company shall be relieved of or shall be entitled to receive from the railway company repayment of such proportion of the cost of construction of the railway sidings or works so used and the corporation shall be relieved of such proportion of the subsequent cost of the maintenance and of the signals and signalmen required to protect the same as shall failing agreement be determined by arbitration as herein-after provided.

A.D. 1917.
Right of
railway
company to
make
further con-
nexions on
their own
land.

17 The Whitworth Company shall punctually liberate any trucks sheets sacks and ropes consigned to them or that contain or cover traffic so consigned within the time required by the railway company's regulations in that behalf and in default thereof they shall on demand pay to the railway company the demurrage charges thereon respectively in accordance with the scale of charges in force for the time being.

Demurrage.

18 All wagons trucks and vans placed upon the sidings upon the area coloured blue as aforesaid or any additions thereto for transit over the railway of the railway company shall be marshalled and arranged in such manner as the general manager or other authorised officer of the railway company shall from time to time reasonably direct and the railway company will only attach or detach wagons in such sidings.

Marshalling.

19 The rates to be paid by the Whitworth Company to the railway company under the railway company's powers in respect of traffic to and from the railways of the Whitworth Company shall from time to time be agreed between the railway company and the Whitworth Company or failing agreement shall be determined by the Railway and Canal Commissioners.

Rates.

20 Provided that the charges of the railway company shall not exceed those of any other railway company or companies in respect of similar traffic conveyed between the same points and that the facilities for delivery of traffic shall not be less expeditious than those afforded by any such other railway company or companies the Whitworth Company shall (so far as they can consistently with the convenient and efficient conduct of their business) consign and cause to be consigned by the line of the railway company such traffic as may be

Routing of
traffic.

[Ch. liii.] *Sir W. G. Armstrong Whitworth* [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.

A.D. 1917. — conveyed over the branch railway of the corporation by the Whitworth Company to or from the works of the Whitworth Company the routing of which they are in a position to control.

Right to re-
move junc-
tion in cer-
tain events.

21 If the Whitworth Company shall fail to comply with the provisions of this agreement or if the aggregate amount of traffic received and despatched by the Whitworth Company over the said junctions in any period of twelve consecutive calendar months is less than ten thousand tons (except in the case of strikes lockouts or accidents causing stoppage of works or for any reason beyond the control of the Whitworth Company) then and in any such case the railway company may determine this agreement by three months' notice in writing and on the expiration of any notice given under this clause it shall be lawful for the railway company to disconnect take up and remove the eastern junction and the junction lines sidings and works connected therewith or any other junction junction lines sidings or works which shall have been made in substitution therefor respectively on the lands belonging to the railway company and the expenses incurred by them in so doing shall be ascertained and certified by the engineer of the railway company and paid by the Whitworth Company to the railway company on demand but credit shall be given to the Whitworth Company for the then value of any materials on the land of the railway company which shall have been provided by and at the expense of the Whitworth Company such value to be ascertained and certified by the engineer of the railway company.

Certain pay-
ments under
this agree-
ment to be
divisible
between cor-
poration
Clayton
Company
and Whit-
worth Com-
pany.

22 As between the corporation the Clayton Company and the Whitworth Company it is hereby expressly declared and agreed that the payments and expenses to be from time to time made or incurred by the corporation under this agreement shall form part of the total costs divisible amongst them according to their respective tonnage of goods materials minerals and things under the Clayton Company's agreement and the scheduled agreement respectively Provided always that no part of any expense incurred by the corporation under clause 13 of this agreement in providing constructing and laying down (as distinguished from maintaining) the further or additional siding accommodation referred to in that clause shall be charged against the Clayton Company.

Saving of
Clayton
Company's
agreement.

23 As between the railway company the corporation and the Clayton Company it is hereby declared and agreed that subject to the modifications provided for in this agreement the Clayton Company's agreement is hereby confirmed.

Arbitration.

24 All questions or differences which may at any time hereafter arise between the parties hereto with respect to any of the provisions of this agreement or anything to be done thereunder shall (except as

herein otherwise expressly provided) be referred to a single arbitrator under and in accordance with the provisions of the Arbitration Act 1889. A.D. 1917. —

25 The reasonable costs and expenses of the corporation and of the Clayton Company of and incidental to this agreement and any parliamentary proceedings for the confirmation thereof shall be borne by the Whitworth Company. Costs of corporation and Clayton Company.

26 This agreement (except clause 25) is conditional on the Bill being passed and this agreement being confirmed by Parliament and is subject to such alterations as Parliament may think fit to make therein but if any material alteration in such agreement is made it shall be competent to any party to this agreement to withdraw the same (except clause 25 which shall remain in force) Provided that the Whitworth Company shall not withdraw this agreement without at the same time withdrawing the Bill. Agreement subject to sanction by Parliament.

IN WITNESS whereof the parties hereto have respectively caused their common seals to be affixed the day and year first before written.

The common seal of the Lancashire and Yorkshire Railway Company was hereunto affixed in the presence of—

R. C. IRWIN Secretary.



R. A. TATTON.

The common seal of the corporation of the city of Manchester was hereunto affixed in pursuance of an order of the council of the said city in the presence of—

THOS. SMETHURST Lord Mayor.
 THOMAS HUDSON Town Clerk.



17288

The common seal of the Clayton Aniline Company Limited was hereunto affixed in the presence of—

X. CASTELLI }
 W. WELSH } Two Directors.



GEO. BIGGS Secretary.

[Ch. lii.] *Sir W. G. Armstrong Whitworth* [7 & 8 GEO. 5.]
and Company Limited (Railways) Act, 1917.

A.D. 1917. The common seal of Sir W. G. Armstrong
— Whitworth and Company Limited was
hereunto affixed in pursuance of a resolu-
tion of the board of directors in the
presence of—

J. H. B. NOBLE }
J. M. FALKNER } Two Directors.

A. HY. COCHRANE Secretary.

The Seal
of Sir W. G.
Armstrong
Whitworth
and Co.
Limited.

Printed by EYRE and SPOTTISWOODE, LIMITED,

FOR

Sir FREDERICK ATTERBURY, K.C.B., the King's Printer of Acts of Parliament.

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